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## Law – 529: Offences Against Child and Juvenile Offence (Paper – VII) 3<sup>rd</sup> Semester

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### Rights of Child under the Indian Constitution

(Articles 21, 23, 24 and Directive Principles of State Policy – Articles 39(e) & 39(f))

#### Introduction

Children represent the most delicate and valuable asset of any nation. Their proper development ensures the social, moral, and economic progress of the country. However, due to poverty, illiteracy, and social evils, children often face exploitation, neglect, and deprivation.

Recognizing this, the **Constitution of India** provides a comprehensive framework for the **protection, welfare, and development of children** through a combination of **Fundamental Rights** and **Directive Principles of State Policy (DPSPs)**.

These provisions not only prohibit the exploitation of children but also ensure that they receive proper education, health, and opportunities for growth.

## I. Fundamental Rights Protecting Children

The **Fundamental Rights (Part III)** of the Constitution are enforceable by courts and directly protect the child from abuse, exploitation, and neglect. The following articles are specifically relevant:

### ➤ Article 21 – Right to Life and Personal Liberty

#### Text of Article 21:

*“No person shall be deprived of his life or personal liberty except according to procedure established by law.”*

Originally, Article 21 guaranteed only protection against unlawful deprivation of life. However, through judicial interpretation, the Supreme Court has expanded its scope to include **the right to live with human dignity**, encompassing **education, health, nutrition, and a pollution-free environment**, which are vital for a child’s development.

#### Judicial Expansion and Case Laws

##### 1. **Unnikrishnan J.P. v. State of Andhra Pradesh (1993)**

The Supreme Court held that the **Right to Education up to the age of 14 years** is an integral part of Article 21. This judgment paved the way for the insertion of **Article 21A** by the 86th Constitutional Amendment (2002).

##### 2. **M.C. Mehta v. State of Tamil Nadu (1996)**

The Court directed the State to **prohibit child labour in hazardous industries** and ensure **education and rehabilitation** for the affected children. The judgment emphasized that a child’s right to live with dignity cannot be sacrificed for economic reasons.

##### 3. **Bandhua Mukti Morcha v. Union of India (1984)**

The Court recognized **the right against bonded labour** and directed the government to identify and rehabilitate children working under bondage or forced conditions.

Thus, Article 21 has become the **umbrella provision** guaranteeing all essential aspects of child welfare.

### ➤ Article 23 – Prohibition of Traffic in Human Beings and Forced Labour

#### Text of Article 23(1):

*“Traffic in human beings and begar and other similar forms of forced labour are prohibited and any contravention of this provision shall be an offence punishable in accordance with law.”*

This provision directly prohibits:

- **Child trafficking,**
- **Forced or bonded labour,** and
- **Compulsory begging involving children.**

It ensures that no child is compelled to work or exploited for economic gain.

#### Judicial Interpretation

##### • **People’s Union for Democratic Rights v. Union of India (1982)**

The Supreme Court held that employing children for wages below the statutory minimum or forcing them to work due to poverty amounts to **“forced labour”** and violates Article 23.

The Court made it clear that economic compulsion does not justify exploitation.

Thus, Article 23 ensures **freedom from economic exploitation and human trafficking**, protecting children’s physical and moral well-being.

➤ **Article 24 – Prohibition of Employment of Children in Factories, etc.**

**Text of Article 24:**

*“No child below the age of fourteen years shall be employed to work in any factory or mine or engaged in any other hazardous employment.”*

This provision provides **absolute protection** to children under 14 years from working in dangerous or unhealthy conditions.

Its purpose is to ensure that **a child’s education, health, and normal development are not hampered by premature entry into labour.**

**Case Law**

- **M.C. Mehta v. State of Tamil Nadu (1996)**

The Court directed strict enforcement of Article 24 and issued guidelines for compensating and rehabilitating children employed in hazardous industries such as fireworks and match factories.

The Court also ordered that children released from labour must be provided **free education and financial support** for their families.

**Statutory Support**

To enforce Article 24, Parliament enacted:

- **The Child Labour (Prohibition and Regulation) Act, 1986**, and
- **The Child and Adolescent Labour (Prohibition and Regulation) Amendment Act, 2016**, which completely prohibit employment of children below 14 years and regulate work of adolescents between 14–18 years.

**II. Directive Principles of State Policy (Part IV)**

DPSPs are **non-justiciable guidelines** to the State to achieve social and economic justice. They play a vital role in shaping laws and policies for **child protection and welfare.**

➤ **Article 39(e)**

It directs the State to ensure that **“the health and strength of workers, men and women, and the tender age of children are not abused”** and that citizens are not forced by economic necessity to enter vocations unsuited to their age or strength.

This article focuses on **preventing child exploitation and unsafe employment.**

➤ **Article 39(f)**

It provides that **children are to be given opportunities and facilities to develop in a healthy manner and in conditions of freedom and dignity**, and that **childhood and youth are protected against exploitation and moral and material abandonment.**

This forms the **constitutional foundation for child welfare policies**, including free education, nutrition programs, and protection against abuse.

**Judicial Support**

- **Lakshmi Kant Pandey v. Union of India (1984)**

The Supreme Court emphasized that in matters of **child adoption**, the *best interest and welfare of the child* must always be the primary consideration.

The Court framed guidelines to prevent exploitation of children in inter-country adoptions.

- **Sheela Barse v. Union of India (1986)**

The Court laid down safeguards for **juveniles in remand homes**, ensuring humane treatment and access to legal aid and rehabilitation.

These judicial interventions transformed DPSPs into **living constitutional principles**, influencing child-protection legislation like the **Juvenile Justice (Care and Protection of Children) Act, 2015**.

### III. Other Relevant Constitutional Provisions

1. **Article 21A (Inserted by 86th Amendment, 2002)**

Provides **free and compulsory education** to all children aged **6 to 14 years**.

It ensures educational empowerment as the key to preventing child labour and exploitation.

2. **Article 45**

Directs the State to provide **early childhood care and education** for all children below the age of six years, reflecting concern for pre-school development.

3. **Article 47**

Obliges the State to raise the **level of nutrition and public health**, which is essential for children's physical and mental development.

4. **Article 15(3)**

Empowers the State to make **special provisions for children and women**, thereby justifying welfare legislation aimed exclusively at their protection.

### IV. Judicial Activism in Child Protection

Indian judiciary has been proactive in interpreting constitutional provisions in favour of child welfare.

- In **Vishal Jeet v. Union of India (1990)**, the Court directed the government to take effective steps to eradicate child prostitution and child trafficking.
- In **Gaurav Jain v. Union of India (1997)**, the Supreme Court issued directions for the **rehabilitation of children of sex workers**, recognizing their right to dignity and education.

Through such judgments, the courts have transformed constitutional promises into **enforceable human rights** for children.

### Conclusion

The Indian Constitution provides a **comprehensive and progressive framework** for the protection, welfare, and development of children.

While **Fundamental Rights (Articles 21, 23, 24)** ensure enforceable safeguards against exploitation and deprivation, the **Directive Principles (Articles 39(e), 39(f), 45, 47)** guide the State in creating a child-friendly environment.

Judicial interpretations have further expanded these provisions to cover education, health, and rehabilitation, ensuring that every child enjoys a **life of dignity, equality, and opportunity**.

Hence, the **Constitution of India stands as the supreme guardian of child rights**, blending legal protection with humanitarian concern and setting a moral duty for the State to secure the best interests of every child.

## **Rights of Child – A Global Perspective**

- **UN Declaration on the Rights of the Child, 1959**

### Introduction

The protection and promotion of child rights is not only a national concern but also an **international responsibility**. After World War II, the world community realized that children, being the most vulnerable group, needed **special safeguards and care**.

As a result, the **United Nations General Assembly adopted the “Declaration of the Rights of the Child” on 20th November 1959**.

This declaration laid down **ten guiding principles** for the welfare, protection, and development of children, serving as a foundation for all subsequent international and national laws relating to child rights — including the **UN Convention on the Rights of the Child (1989)** and India’s own constitutional and legislative framework.

### **Objective of the Declaration**

The primary objective of the 1959 Declaration is to ensure that **every child, without discrimination of race, colour, sex, religion, or social origin**, enjoys basic human rights — including the right to **health, education, protection, and love** — necessary for their full physical, mental, and moral development.

It emphasizes that the **best interest of the child** must be the **paramount consideration** in all actions concerning children — a principle that later became the cornerstone of international child law.

### **Main Features and Principles of the Declaration (Ten Principles)**

The Declaration contains **ten fundamental principles**, each representing a moral and social commitment by States to protect children’s welfare.

#### **1. Principle I – Right to Equality and Non-Discrimination**

Every child shall enjoy all the rights and freedoms set forth in this Declaration **without distinction** of race, colour, sex, language, religion, or social origin.

This principle establishes the **universal and equal nature of child rights**, rejecting all forms of discrimination.

#### **2. Principle II – Special Protection and Opportunities for Development**

The child shall enjoy **special protection** and be given **opportunities and facilities** to develop physically, mentally, morally, spiritually, and socially in a healthy and normal manner.

The State and society are responsible for ensuring this environment.

#### **3. Principle III – Right to a Name and Nationality**

Every child shall have from birth the **right to a name and nationality**, ensuring legal recognition and identity.

This right prevents statelessness and affirms the child’s legal status in society.

#### **4. Principle IV – Right to Adequate Nutrition, Housing, and Medical Care**

The child has the right to **adequate nutrition, housing, recreation, and medical services**.

This principle establishes the foundation for **health and welfare programs** for children worldwide.

#### **5. Principle V – Right to Special Care if Disabled**

Children who are physically, mentally, or socially handicapped must receive **special treatment, education, and care** suited to their condition.

This emphasizes inclusivity and social justice for disabled children.

#### **6. Principle VI – Right to Love, Understanding, and Parental Care**

The child, for the full and harmonious development of personality, needs **love and understanding**.

Wherever possible, a child should **grow up under the care and responsibility of his parents**, in an atmosphere of affection and moral security.

This principle recognizes the **family as the natural environment** for child growth.

## 7. Principle VII – Right to Free and Compulsory Education

Every child has the right to receive **free and compulsory education** at least in the elementary stages.

The Declaration also emphasizes that education should promote **general culture** and enable the child to become a useful member of society.

This principle later in

## 8. Principle VIII – Priority in Protection and Relief

The child must, in all circumstances, be among the **first to receive protection and relief** during situations like natural disasters, war, or conflict.

This ensures that children's needs are prioritized during emergencies.

## 9. Principle IX – Protection from Neglect, Cruelty, and Exploitation

The child must be **protected from all forms of neglect, cruelty, and exploitation**.

No child should be permitted to engage in employment or occupation harmful to his health or education.

This principle became the basis for **child labour and anti-trafficking laws** globally, including **Article 24 of the Indian Constitution**.

## 10. Principle X – Right to Upbringing in the Spirit of Peace and Brotherhood

The child should be brought up in a spirit of **understanding, tolerance, friendship among peoples, peace, and universal brotherhood**, and with full consciousness that his energy and talents should be devoted to the service of fellow men.

This encourages the moral and social development of children to promote **world peace and human dignity**.

## Significance of the 1959 Declaration

1. It marked the **first comprehensive international recognition** of children's unique needs and rights.
2. It influenced the adoption of the **UN Convention on the Rights of the Child (1989)**, which legally binds States to protect child rights.
3. It provided a **moral and legal foundation** for domestic child protection laws in many countries, including India.
4. It helped establish global organizations like **UNICEF** to work for children's health, education, and welfare.
5. It laid the groundwork for the modern understanding that children are not merely objects of charity but **holders of rights**.

## Implementation in India

India, being a member of the United Nations, endorsed the principles of the 1959 Declaration.

The Indian legal system reflects these ideals through:

- **Fundamental Rights** (Articles 21, 23, 24),
- **Directive Principles** (Articles 39(e) & (f)),
- **Right to Education (Article 21A)**, and
- Special legislations such as the **Juvenile Justice Act, 2015**, **POCSO Act, 2012**, and **Child Labour (Prohibition and Regulation) Act, 1986**.

## Conclusion

The **UN Declaration on the Rights of the Child, 1959** is a milestone in the evolution of international child law.

Though it was not legally binding, it carried immense **moral and political significance** by recognizing that every

child deserves protection, education, and love.

Its ten principles continue to guide nations like India in formulating laws and policies for child welfare.

Hence, this Declaration stands as the **foundation stone of all modern child rights movements**, emphasizing that the **best interest of the child shall be the paramount consideration** in every human action.

### ➤ UN Convention on the Rights of the Child, 1989

## Introduction

The **United Nations Convention on the Rights of the Child (UNCRC), 1989** is the most comprehensive and universally accepted international instrument relating to child rights.

It was **adopted by the UN General Assembly on 20th November 1989** and **came into force on 2nd September 1990**.

This Convention legally binds the member States to respect, protect, and fulfil the rights of every child, emphasizing that children are **independent holders of rights** and not merely subjects of welfare.

India ratified the Convention on **11th December 1992**, thereby committing to incorporate its principles into national laws and policies.

## Objectives of the Convention

The main objectives of the UNCRC are:

1. To recognize children as **individuals with their own rights and freedoms**.
2. To ensure **protection, development, and participation** of every child in all aspects of life.
3. To establish **minimum international standards** for the survival, growth, and dignity of children.
4. To promote **international cooperation** in solving problems related to child exploitation, health, education, and welfare.

## Definition of Child

Under **Article 1** of the Convention:

*A child means every human being below the age of eighteen years unless, under the law applicable to the child, majority is attained earlier.*

This universal definition provides a clear age limit for the protection of child rights across nations.

## Core Principles of the Convention

The entire Convention is based on four guiding principles that form the backbone of all child rights:

1. **Non-Discrimination (Article 2):**  
All rights apply to every child without discrimination based on race, religion, gender, language, or social origin.
2. **Best Interests of the Child (Article 3):**  
In all actions concerning children—whether by courts, administrative authorities, or legislatures—the **best interests of the child** must be the **primary consideration**.
3. **Right to Life, Survival and Development (Article 6):**  
Every child has the **inherent right to life**, and the State must ensure their survival, growth, and full development.
4. **Right to Participation (Article 12):**  
Children have the right to **express their own views freely** in matters affecting them, and such views must be given due weight according to the child's age and maturity.

## Major Rights Guaranteed under the Convention

The UNCRC provides a broad framework of civil, political, economic, social, and cultural rights. These can be grouped as follows:

### 1. Right to Survival

Includes the right to life, adequate food, nutrition, health, and shelter.

- **Article 6:** Right to life and development.
- **Article 24:** Right to the highest attainable standard of health and access to medical services.
- **Article 27:** Right to a standard of living adequate for physical, mental, and social development.

### 2. Right to Protection

Children must be protected from all forms of exploitation, abuse, and neglect.

- **Article 19:** Protection from physical or mental violence, injury, abuse, neglect, or exploitation.
- **Article 32:** Protection from economic exploitation and hazardous work.
- **Article 34:** Protection from all forms of sexual exploitation and sexual abuse.
- **Article 35:** Protection from abduction, sale, or trafficking of children.
- **Article 37:** Protection from torture, cruel treatment, and unlawful detention.

### 3. Right to Development

Ensures opportunities for education, cultural activities, and access to information for holistic growth.

- **Article 28:** Right to free and compulsory primary education.
- **Article 29:** Education should develop the child's personality, talents, and abilities to the fullest potential.
- **Article 31:** Right to rest, leisure, play, and cultural participation.

### 4. Right to Participation

Recognizes children as active members of society who can express their opinions.

- **Article 12:** Right to express freely their views in all matters affecting them.
- **Article 13:** Right to freedom of expression.
- **Article 14:** Right to freedom of thought, conscience, and religion.
- **Article 15:** Right to freedom of association and peaceful assembly.

## Optional Protocols to the Convention

To strengthen the protection framework, the UN adopted three **Optional Protocols** to the CRC:

1. **Optional Protocol on the Involvement of Children in Armed Conflict (2000):**  
Prohibits recruitment of children below 18 years into armed forces.
2. **Optional Protocol on the Sale of Children, Child Prostitution, and Child Pornography (2000):**  
Criminalizes all forms of sexual exploitation and sale of children.
3. **Optional Protocol on a Communications Procedure (2011):**  
Allows children or their representatives to file complaints to the UN Committee if their rights under the Convention are violated.



## Monitoring Mechanism

Implementation of the Convention is supervised by the **Committee on the Rights of the Child**, consisting of independent experts.

Member States are required to:

- Submit **periodic reports** on the measures taken to implement the Convention, and
- Cooperate with **UNICEF and other international agencies** for child welfare programs.

## Impact and Implementation in India

After ratifying the Convention in 1992, India took several steps to align its domestic laws with UNCRC principles:

1. **National Commission for Protection of Child Rights (NCPCR)** established under the Commissions for Protection of Child Rights Act, 2005.
2. Enactment and amendment of child-related laws such as:
  - **Juvenile Justice (Care and Protection of Children) Act, 2015**
  - **Protection of Children from Sexual Offences (POCSO) Act, 2012**
  - **Child Labour (Prohibition and Regulation) Amendment Act, 2016**
  - **Right of Children to Free and Compulsory Education Act, 2009**
3. Adoption of policies like the **National Policy for Children, 2013**, focusing on survival, health, education, and participation.
4. Establishment of schemes such as **Integrated Child Development Services (ICDS)** and **Beti Bachao Beti Padhao**.

## Judicial Recognition in India

Indian courts have repeatedly referred to the UNCRC in interpreting child welfare provisions:

- **Sheela Barse v. Union of India (1986)**: The Supreme Court laid down guidelines for the protection of children in custodial institutions.
- **Vishal Jeet v. Union of India (1990)**: The Court directed the government to take effective steps against child trafficking and prostitution in the light of international conventions.
- **Gaurav Jain v. Union of India (1997)**: Recognized the right of children of sex workers to dignity, education, and equal opportunities.

These cases demonstrate that the UNCRC principles have become part of India's constitutional jurisprudence.

## Conclusion

The **UN Convention on the Rights of the Child, 1989** is a landmark treaty that transformed the status of children from mere beneficiaries of charity to **bearers of legal rights**.

It establishes a holistic approach by combining survival, development, protection, and participation as inseparable components of child welfare.

India's commitment to the Convention reflects in its progressive legislation and judicial activism aimed at ensuring the dignity and security of every child.

Thus, the UNCRC remains the **cornerstone of international child rights law**, ensuring that every child enjoys the right to live, learn, and grow with freedom, equality, and dignity.

## **Introduction**

Children are among the most affected victims of armed conflicts and wars. Thousands of children around the world are recruited as soldiers, messengers, porters, or even used for sexual purposes.

Recognizing the growing problem of **child soldiers**, the international community formulated several instruments to prohibit and prevent the use of children in armed conflicts. Two of the most significant among them are the **Cape Town Principles and Best Practices (1997)** and the **Paris Commitments (2007)**.

Both instruments were developed to strengthen the implementation of the **UN Convention on the Rights of the Child (1989)** and its **Optional Protocol on the Involvement of Children in Armed Conflict (2000)**.

### **1. Cape Town Principles and Best Practices, 1997**

#### **Background**

The **Cape Town Principles** were adopted in **April 1997** in **Cape Town, South Africa**, after a symposium organized jointly by the **United Nations Children's Fund (UNICEF)** and **Non-Governmental Organizations (NGOs)** working for child protection.

These Principles are not legally binding, but they provide **authoritative guidance** on how to prevent the recruitment of children and assist in their rehabilitation and reintegration into society.

#### **Objectives**

1. To define clearly who is considered a *child soldier*.
2. To establish best practices for **demobilization, rehabilitation, and reintegration** of child soldiers.
3. To guide governments, armed groups, and NGOs in **ending the use of children in armed conflicts**.

#### **Definition of "Child Soldier"**

The Cape Town Principles gave a **broad and inclusive definition** of "child soldier."

According to it, a *child soldier* is **any person below 18 years of age who is part of any regular or irregular armed force or armed group** in any capacity — not only as a fighter, but also as:

- Cooks, porters, messengers, spies, or
- Anyone recruited for sexual purposes or forced marriage.

This definition became the **international standard** and was later incorporated into the **Paris Principles (2007)** and other UN documents.

#### **Key Features / Best Practices**

##### **1. Prevention of Recruitment:**

States and armed groups must ensure that no child below 18 years is recruited into armed forces, whether voluntarily or forcibly.

##### **2. Demobilization:**

All children associated with armed groups should be **immediately demobilized**, disarmed, and separated from combatants.

##### **3. Rehabilitation:**

Demobilized children should receive **psychological counseling, medical care, and education** to help them recover from trauma.

#### 4. **Reintegration:**

Children must be reintegrated into **their families and communities** with adequate support such as schooling, vocational training, and social acceptance.

#### 5. **Special Protection for Girls:**

Recognizing the specific abuse faced by girls (sexual exploitation, forced marriages), the Principles call for **gender-sensitive rehabilitation programs**.

#### 6. **Role of International Community:**

Governments, UN agencies, and NGOs are urged to **cooperate internationally** to eliminate child recruitment and provide resources for rehabilitation programs.

### **Significance**

- The Cape Town Principles were the **first international instrument** to provide a detailed, practical framework for preventing child soldier recruitment.
- They influenced the drafting of the **Optional Protocol to the UNCRC (2000)** and the **Paris Commitments (2007)**.
- They helped shift the focus from punishment to **protection and rehabilitation** of children affected by war.

## **2. The Paris Commitments and Paris Principles, 2007**

### **Background**

Ten years after the Cape Town Principles, armed conflicts continued to involve children in various parts of the world.

To renew and strengthen international efforts, the **Government of France** and **UNICEF** hosted an international conference in **Paris in February 2007**, attended by more than **60 countries**.

The conference resulted in two important documents:

1. **The Paris Commitments to Protect Children from Unlawful Recruitment or Use by Armed Forces or Armed Groups**, and
2. **The Paris Principles and Guidelines on Children Associated with Armed Forces or Armed Groups**.

### **Objectives**

1. To reaffirm the international community's commitment to **end the recruitment and use of children in armed conflict**.
2. To **update and expand** the Cape Town Principles by incorporating lessons learned over the decade.
3. To strengthen cooperation among governments, international agencies, and civil society to ensure **accountability and rehabilitation**.

### **Key Commitments**

#### 1. **Universal Age Limit:**

States reaffirmed that **no person under 18 years** should be recruited or used in hostilities by armed forces or armed groups.

#### 2. **Criminalization of Child Recruitment:**

Countries agreed to adopt domestic laws making the **recruitment and use of child soldiers a criminal offence** punishable under national and international law.

### 3. **Protection and Assistance:**

Children formerly associated with armed forces must receive **medical, educational, and psychosocial support** for effective reintegration.

### 4. **Gender-Sensitive Approach:**

The Commitments emphasize protection for **girls**, who often face sexual violence and discrimination after demobilization.

### 5. **Accountability and Monitoring:**

Governments pledged to **report regularly** on progress and to cooperate with the **UN Security Council Working Group on Children and Armed Conflict**.

### 6. **Rehabilitation and Social Reintegration:**

Focus on long-term reintegration programs so that children can return to normal life through education, vocational training, and family reunification.

## **Paris Principles (Detailed Guidelines)**

The **Paris Principles** supplement the Commitments by providing **detailed operational guidelines**.

They cover:

- Identification and release of child soldiers,
- Community-based reintegration,
- Prevention through education and awareness,
- Role of media and NGOs,
- Ensuring that children are treated as **victims and not as criminals** even if they participated in armed conflict.

## **Significance**

1. The Paris Commitments and Principles reaffirm the global community's **zero-tolerance policy** toward the recruitment and use of child soldiers.
2. They complement the **Optional Protocol on the Involvement of Children in Armed Conflict (2000)** by detailing steps for implementation.
3. They highlight that **rehabilitation and reintegration** are essential for achieving lasting peace and justice.
4. They strengthen international cooperation under the framework of **UNICEF, UN Security Council Resolution 1612 (2005)**, and the **Rome Statute of the International Criminal Court (1998)**, which recognizes recruitment of children under 15 as a **war crime**.

## **India's Stand and Implementation**

India supports the objectives of both the **Cape Town Principles** and the **Paris Commitments**, although it is not directly affected by large-scale child soldiering.

India's domestic laws—such as the **Juvenile Justice (Care and Protection of Children) Act, 2015**, and the **POCSO Act, 2012**—reflect its commitment to child protection and rehabilitation.

India also participates in **UN peacekeeping missions** that follow the standards laid down in these international instruments.

## **Conclusion**

The **Cape Town Principles (1997)** and the **Paris Commitments (2007)** represent crucial milestones in the global fight against the exploitation of children in armed conflict.

While the Cape Town Principles laid the foundation by defining *child soldiers* and establishing best practices for their protection and rehabilitation, the Paris Commitments renewed this dedication by securing the participation of States in enforcing these standards.

Together, they reaffirm the global consensus that **no child should ever take part in war**, and that every child affected by armed conflict deserves **protection, recovery, and reintegration** into a peaceful society.

### ➤ **ILO and the Rights of the Child**

*(Article 22 of the ILO Constitution; Article 11(1) of the Forced Labour Convention, 1930 – C29)*

#### **Introduction**

The **International Labour Organization (ILO)** is the oldest specialized agency of the United Nations, established in **1919** under the Treaty of Versailles.

Its primary objective is to promote **social justice and internationally recognized human and labour rights**.

Among its most important missions is the **protection of children from economic exploitation and hazardous labour**.

Child labour deprives children of their **childhood, education, and dignity**, and is a violation of their fundamental human rights. The ILO has therefore adopted several conventions and recommendations to eliminate child labour and protect working children.

Two key provisions concerning children's rights are:

1. **Article 22 of the ILO Constitution**, and
2. **Article 11(1) of the ILO Forced Labour Convention, 1930 (Convention No. 29)**.

#### **1. Article 22 of the ILO Constitution**

##### **Text of Article 22**

Article 22 of the ILO Constitution provides that:

“Each of the Members agrees to make an **annual report** to the International Labour Office on the measures which it has taken to give effect to the provisions of Conventions to which it is a party.”

##### **Explanation**

This Article ensures **accountability** among member states. When a country ratifies any ILO Convention—such as those on child labour, forced labour, or minimum age—it must **submit an annual report** describing the **steps taken to implement** those standards.

These reports are examined by the **Committee of Experts on the Application of Conventions and Recommendations (CEACR)**.

If a member fails to comply, the ILO may:

- Request further clarification,
- Send a commission of inquiry, or
- Raise the issue before the International Labour Conference.

Thus, Article 22 creates a **mechanism of supervision and monitoring** to ensure that children's rights under ILO conventions are effectively protected.

#### **Significance for Child Rights**

1. **Accountability Mechanism:**

Ensures that countries regularly monitor and report progress in eliminating child labour and forced labour.

2. **Transparency:**

Promotes open international scrutiny of national laws and practices affecting children.

3. **Encouragement of Compliance:**

Encourages member states to enact **child protection laws**, establish **labour inspection systems**, and provide **education for children** in place of work.

4. **International Cooperation:**

Helps in collecting comparative data and sharing best practices to **eradicate child exploitation** globally.

## 2. Article 11(1) of the ILO Forced Labour Convention, 1930 (Convention No. 29)

### Background

The **Forced Labour Convention (C29)** was adopted by the ILO in **1930** to suppress the use of all forms of forced or compulsory labour.

This includes labour exacted under threat or penalty and without the worker's voluntary consent.

Article 11(1) of this Convention specifically addresses the **protection of children** from forced labour.

### Text of Article 11(1)

"Only **adult able-bodied males** who are of an apparent age of not less than **18 years** and not more than **45 years** may be called upon for forced or compulsory labour."

### Explanation

This provision clearly **prohibits the use of forced labour by children under the age of 18 years**.

It recognizes that children are **physically and mentally unfit** to be subjected to compulsory or exploitative work.

The Article also restricts even adult participation to certain age and fitness limits, which reflects the ILO's concern for human dignity and humane conditions of work.

### Objective

1. To **abolish forced or compulsory labour** in all forms.
2. To **protect children and minors** from being subjected to slavery, servitude, or bonded labour.
3. To lay the foundation for later conventions directly addressing **child labour and minimum age** (like C138 and C182).

### Connection with Child Rights

The ILO considers forced labour involving children as one of the "**worst forms of child labour**."

Such practices are prohibited under:

- **Convention No. 138 (Minimum Age Convention, 1973)**
- **Convention No. 182 (Worst Forms of Child Labour Convention, 1999)**

Together, these conventions form the **core international framework** for protecting children from exploitation.

### Other Relevant ILO Instruments on Child Rights

1. **Minimum Age Convention, 1973 (C138):**

Sets the minimum age for employment at **15 years**, and **18 years** for hazardous work.

## 2. **Worst Forms of Child Labour Convention, 1999 (C182):**

Calls for immediate action to eliminate the **worst forms of child labour**, including slavery, prostitution, trafficking, and hazardous work.

## 3. **ILO Declaration on Fundamental Principles and Rights at Work (1998):**

Declares freedom from child labour and forced labour as **fundamental human rights** binding on all ILO members, even if they haven't ratified the conventions.

### **India's Position**

India has been an active member of the ILO since **1919**.

It has ratified the following key conventions:

- **Convention No. 138 (Minimum Age Convention)** – ratified in 2017.
- **Convention No. 182 (Worst Forms of Child Labour Convention)** – ratified in 2017.

India's domestic legislation reflects these commitments:

- **Child Labour (Prohibition and Regulation) Act, 1986 (as amended in 2016)**
- **Right of Children to Free and Compulsory Education Act, 2009**
- **Juvenile Justice (Care and Protection of Children) Act, 2015**

These laws prohibit employment of children below 14 years and ensure their right to education and protection from exploitation.

### **Conclusion**

The **International Labour Organization** has played a **pivotal role** in safeguarding children's rights against exploitation and forced labour.

Through **Article 22 of its Constitution**, the ILO ensures continuous supervision and accountability of member states, while **Article 11(1) of the Forced Labour Convention, 1930** directly prohibits child involvement in forced labour.

Together, these provisions form a **strong international framework** for the elimination of child labour and the protection of children's dignity, health, and education.

The ILO's efforts, supported by national laws and global cooperation, move the world closer to the realization of a fundamental goal —

**"No child should work; every child must learn."**

## **Unit – II**

### **Offences Against Child under the Bharatiya Nyaya Sanhita (BNS), 2023**

*(Sections 137–142: Kidnapping, Abduction and Begging)*

#### **Introduction**

The **Bharatiya Nyaya Sanhita, 2023 (BNS)** replaces the **Indian Penal Code, 1860 (IPC)** with the aim of modernizing India's criminal laws.

It consolidates and updates provisions related to **offences against human body, property, and state**, while giving special attention to **offences against women and children**.

Sections **137 to 142** of the BNS specifically deal with **kidnapping, abduction, and related offences**, which are serious crimes as they often involve children, exploitation, and violation of personal liberty.

#### **1. Section 137 – Kidnapping**

## Meaning

Section 137 of the BNS defines and classifies kidnapping into two types, similar to the old IPC:

1. **Kidnapping from India**, and
2. **Kidnapping from lawful guardianship**.

### (a) Kidnapping from India

When any person conveys a person beyond the limits of India **without the consent of that person or of someone legally authorized to consent**, it is called *kidnapping from India*.

#### Essentials:

1. Taking a person beyond Indian territory.
2. Without consent.
3. Consent must be from the person or someone legally authorized (like guardian).

#### Punishment:

Imprisonment up to **7 years** and **fine**.

### (b) Kidnapping from Lawful Guardianship

When a person **takes or entices** a **minor** (male under 18 years, female under 18 years) or a **person of unsound mind** out of the keeping of a lawful guardian **without the guardian's consent**, it is *kidnapping from lawful guardianship*.

#### Essentials:

1. Victim must be a **minor** or **person of unsound mind**.
2. Act of **taking** or **enticement**.
3. From **lawful guardian's keeping**.
4. **Without consent** of such guardian.

#### Important Point:

Even if the minor consents, the offence is still committed — because the law presumes that a minor cannot give valid consent.

#### Punishment:

Imprisonment up to **7 years** and **fine**.

#### Important Case Law

##### 👉 **S. Varadarajan v. State of Madras (1965 AIR 942)**

The Supreme Court held that mere permission given by a girl who voluntarily leaves her home is not “taking” unless the accused actively encourages or facilitates her departure.

## 2. Section 138 – Abduction

### Definition

When a person **by force or deceitful means** compels or induces another person to go from any place, it is *abduction*.

#### Essentials:



1. Use of **force** or **deceitful means**.
2. **Compelling** or **inducing** a person to move from one place to another.

#### Key Point:

Unlike kidnapping, abduction is an **offence against free will** and can be committed against **any person**, not just minors.

#### Difference between Kidnapping and Abduction

| Basis         | Kidnapping                                  | Abduction                                          |
|---------------|---------------------------------------------|----------------------------------------------------|
| Age of Victim | Only minors or persons of unsound mind      | Any person                                         |
| Means Used    | Taking or enticing                          | Force or deceit                                    |
| Consent       | Consent of guardian relevant                | Consent of person relevant                         |
| Nature        | Complete offence as soon as person is taken | Continuing offence (depends on movement)           |
| Purpose       | Not essential                               | Purpose (e.g., murder, ransom) makes it punishable |

#### Punishment (under BNS)

Abduction itself is not punishable unless done for a specific unlawful purpose — such as:

- Abduction to commit murder, rape, trafficking, or slavery (Sections 139–142).

### 3. Section 139 – Kidnapping or Abducting a Child for Begging

#### Meaning

If any person **kidnaps or abducts a child** or **obtains custody of a child** with the **intention of employing or using the child for begging**, he commits an offence under Section 139.

#### Essentials

1. **Act:** Kidnapping, abduction, or obtaining custody of a child.
2. **Intention:** To use the child for **begging** or **earning income through sympathy**.
3. **Victim:** Must be a **child (below 18 years)**.

#### Punishment

- **Imprisonment:** Up to **10 years**, and
- **Fine**.

If the child is **maimed or injured** for the purpose of begging:

- **Imprisonment for life**, and **fine**.

If **death** results due to such act:

- **Death penalty** or **imprisonment for life**, and **fine**.

#### Explanation

This provision aims to curb the **organized child begging rackets** that exploit poor and homeless children for profit.

#### Case Law

### 👉 **State of Maharashtra v. Shaikh Babbu (1996)**

The court held that using a minor for begging constitutes a grave social crime as it destroys the child's dignity and future.

#### **4. Section 140 – Kidnapping or Abduction with Intent to Murder**

If a person **kidnaps or abducts** another with **intent to murder**, or **puts the person in danger of being murdered**, he is punishable with:

- **Imprisonment for life**, or
- **Imprisonment up to 10 years**, and **fine**.

This section protects children from being kidnapped for **ritual killings, revenge, or ransom**.

#### **5. Section 141 – Kidnapping or Abduction for Ransom**

##### **Meaning**

When a person **kidnaps or abducts** another and **demand s ransom** for release, it is punishable under Section 141.

##### **Essentials**

1. **Kidnapping or abduction** of any person (including a child).
2. **Threat to cause harm or death**.
3. **Demand for ransom** — money, property, or valuable security.

##### **Punishment**

- **Death penalty or imprisonment for life**, and **fine**.

##### **Landmark Case**

### 👉 **Malleshi v. State of Karnataka (2004) 8 SCC 95**

The Supreme Court held that demanding ransom after kidnapping constitutes a heinous crime against society and must be dealt with strictly.

#### **6. Section 142 – Wrongful Concealment or Confinement of Kidnapped or Abducted Child**

##### **Meaning**

If a person **knowingly conceals or confines** a kidnapped or abducted child, he commits an offence under Section 142.

##### **Essentials:**

1. The child must have been **kidnapped or abducted**.
2. The accused must **know** or **believe** this fact.
3. He **conceals or confines** the child intentionally.

##### **Punishment:**

- **Imprisonment up to 7 years**, and **fine**.

This ensures that not only the kidnapper but also **anyone assisting** in hiding the child is held criminally liable.

##### **Conclusion**

Sections **137 to 142** of the **Bharatiya Nyaya Sanhita, 2023** comprehensively cover offences related to **kidnapping, abduction, and exploitation of children**.

They modernize the older IPC provisions by **increasing punishments**, emphasizing **child protection**, and aligning Indian law with **international child rights standards**.

These provisions send a clear message:

Any act that violates a child's **freedom, safety, or dignity** will invite **severe legal consequences** under Indian criminal law.

## **Offences Against Child – Prostitution (Sections 98 & 99, Bharatiya Nyaya Sanhita, 2023)**

### **Introduction**

The **Bharatiya Nyaya Sanhita (BNS), 2023** has replaced the **Indian Penal Code, 1860 (IPC)** with modernized provisions that reflect India's present social realities.

Among its key reforms are the **provisions against sexual exploitation and trafficking**, particularly the use of **children for prostitution or immoral purposes**.

Sections **98 and 99** of the BNS deal specifically with **sexual exploitation of women and children for prostitution and trafficking**, ensuring stringent punishment for those who profit from such crimes.

These provisions correspond to **Sections 370 and 370A of the IPC**, but with broader scope and enhanced protection for minors.

### **1. Section 98 – Trafficking of Person**

#### **Definition**

Section 98 defines **"Trafficking of Person"** in a broad sense to include all acts involving the **recruitment, transportation, harbouring, transfer, or receipt of persons** for exploitation.

#### **Essentials of the Offence**

**1. Act:**

Recruitment, transportation, harbouring, transfer, or receipt of any person.

**2. Means Used:**

By any of the following:

- Threat, use of force, coercion, or abduction,
- Fraud or deception,
- Abuse of power or authority,
- Giving or receiving payments to obtain consent of a person having control over another.

**3. Purpose (Mens Rea):**

For **exploitation**, which includes:

- Prostitution,
- Sexual exploitation,
- Forced labour or services,
- Slavery or similar practices,
- Removal of organs, or
- Exploitation of children.

## Special Rule for Children

### 👉 Explanation 1 to Section 98:

Even if **no means** (such as force or coercion) are used, **recruiting, transporting, or harbouring a child for exploitation** constitutes *trafficking*.

Thus, **consent of a child is immaterial**. This reflects the international principle that **children cannot consent to their own exploitation**.

## Punishment

- **For general trafficking:**  
Imprisonment of **not less than 7 years**, which may extend to **10 years**, and **fine**.
- **If the trafficked person is a child:**  
Imprisonment of **not less than 10 years**, which may extend to **life imprisonment**, and **fine**.
- **If more than one child is trafficked:**  
Punishable with **imprisonment for life**, and **fine**.
- **If public officials or police are involved:**  
**Rigorous imprisonment for life**, and **fine**.

## Explanation of “Exploitation”

The term “exploitation” includes:

- Physical or sexual exploitation,
- Slavery, servitude, or forced labour,
- Organ removal,
- Forced marriage, or
- Use of a child in any illegal or immoral activity such as **prostitution or pornography**.

## Objective

The objective is to **protect human dignity** and to punish those who treat children as commodities for sexual or commercial gain.

It also aligns Indian law with international conventions like the:

- **UN Convention on the Rights of the Child (1989)**,
- **Palermo Protocol (2000)** on trafficking, and
- **ILO Convention No. 182** on the worst forms of child labour.

## Case Law

### 👉 **Bachpan Bachao Andolan v. Union of India (2011)**

The Supreme Court emphasized the need for strict enforcement of anti-trafficking laws and directed all States to take action against those who traffic children for prostitution or forced labour.

## 2. Section 99 – Exploitation of a Trafficked Person

### Meaning

Section 99 punishes any person who **knowingly engages in sexual exploitation** or **uses a trafficked child** for prostitution or other immoral purposes.

This section ensures that not only traffickers but also **those who benefit from the act of trafficking** are held criminally liable.

## Essentials

1. The person must **know or have reason to believe** that the victim is a trafficked person.
2. He **exploits or uses** such person for **sexual purposes, begging, or any other immoral activity**.
3. **Consent of the victim** is not a valid defense.

## Punishment

1. **When victim is an adult:**  
Imprisonment of **not less than 5 years**, extendable to **7 years**, and **fine**.
2. **When victim is a child:**  
Imprisonment of **not less than 7 years**, extendable to **life imprisonment**, and **fine**.

## Purpose

This section targets **customers, pimps, brothel keepers, and others** who exploit trafficked children. It recognizes that **demand drives trafficking**, and therefore, punishing exploiters is essential to dismantle the entire network.

## 3. Relation to Other Laws

The provisions of **Sections 98 & 99, BNS 2023**, operate alongside other child-protection laws such as:

- **The Immoral Traffic (Prevention) Act, 1956 (ITPA):**  
Specifically deals with prostitution and rehabilitation of victims.
- **Protection of Children from Sexual Offences Act, 2012 (POCSO):**  
Provides punishment for sexual offences against minors, including penetrative and non-penetrative sexual assault.
- **Juvenile Justice (Care and Protection of Children) Act, 2015:**  
Provides care and rehabilitation for rescued children.

Together, these laws form a **comprehensive legal shield** against child trafficking and prostitution.

## 4. Significance

1. **Child-Centric Approach:**  
Shifts the focus from punishing the child (as was done historically) to punishing **exploiters and traffickers**.
2. **Alignment with Global Norms:**  
Ensures India's compliance with **UN and ILO conventions**.
3. **Severe Punishments:**  
Acts as a strong **deterrent** against organized networks exploiting children.
4. **Rehabilitation Emphasis:**  
Victims are treated as **survivors** entitled to **counselling, compensation, and reintegration**.

## Conclusion

Sections **98 and 99 of the Bharatiya Nyaya Sanhita, 2023** are powerful tools in India's fight against **child trafficking and prostitution**.

They expand the definition of exploitation, strengthen penalties, and recognize the **special vulnerability of**

children.

These provisions ensure that every child is protected from sexual slavery and that those responsible for such heinous crimes face **strict and certain punishment**.

In essence, the law reinforces the constitutional promise under **Articles 21, 23, and 24** — that every child shall live with **dignity, liberty, and protection from exploitation**.

## **Foeticide and Infanticide (Sections 91–94, Bharatiya Nyaya Sanhita, 2023)**

### **Introduction**

Children, even before birth, are recognized as **potential human beings entitled to protection of life**.

The **Bharatiya Nyaya Sanhita (BNS), 2023**, continues the legal tradition of punishing the destruction of a foetus (foeticide) and the killing of a newborn (infanticide).

These provisions aim to safeguard the **right to life of unborn and newly born children**, reflecting both **constitutional and moral principles** under **Article 21 of the Constitution** — *Right to Life and Personal Liberty*.

### **1. Meaning and Difference**

| <b>Term</b> | <b>Meaning</b> |
|-------------|----------------|
|-------------|----------------|

|                  |                                                                              |
|------------------|------------------------------------------------------------------------------|
| <b>Foeticide</b> | The unlawful act of causing the death of a foetus <i>before it is born</i> . |
|------------------|------------------------------------------------------------------------------|

|                    |                                                                                                                                |
|--------------------|--------------------------------------------------------------------------------------------------------------------------------|
| <b>Infanticide</b> | The killing of a child <i>after birth</i> but before it has attained the age of discretion (generally within 1 year of birth). |
|--------------------|--------------------------------------------------------------------------------------------------------------------------------|

Both are grave offences under the **BNS, 2023**, corresponding to **Sections 312–316 of IPC, 1860**.

### **2. Section 91 – Causing Miscarriage (Foeticide)**

#### **Essentials**

1. Voluntary causing of a woman to miscarry;
2. Without the intention of saving her life;
3. Without her consent or in circumstances not permitted by law.

#### **Explanation**

If a woman **voluntarily causes herself to miscarry** or if another person assists her, it is considered *foeticide*, unless done in **good faith for saving her life**.

#### **Punishment**

- **Up to 3 years imprisonment, or fine, or both.**
- If done **without the woman's consent** → **Imprisonment up to 7 years and fine.**

### **3. Section 92 – Causing Miscarriage of Quick Unborn Child**

#### **Meaning**

A **quick child** means a foetus that has started moving in the mother's womb (usually after 4–5 months of pregnancy).

Destroying such a foetus is a **more serious offence**.

#### **Punishment**

- **Imprisonment up to 10 years, and fine.**

- If done without woman's consent → **Imprisonment for life**, and **fine**.

This section recognizes that a *quick unborn child* is closer to independent life and hence deserves stronger legal protection.

#### 4. Section 93 – Death Caused by Act Done with Intent to Cause Miscarriage

##### Essentials

If an act intended to cause miscarriage results in:

- **Death of the woman**,
- Whether or not the miscarriage actually occurs,

→ The offender is **punishable with imprisonment for life**, or **rigorous imprisonment up to 10 years**, and **fine**.

##### Illustration

If a person administers an abortive drug to a pregnant woman to cause miscarriage, and she dies as a result, that person is guilty under **Section 93**.

#### 5. Section 94 – Act Done with Intent to Prevent Child Being Born Alive or to Cause Its Death After Birth (Infanticide)

##### Essentials

1. The act must be done **before or during childbirth**;
2. The intention must be to:
  - Prevent the child from being born alive, or
  - Cause its death after birth.
3. The act is **not done in good faith to save the mother's life**.

##### Punishment

- **Imprisonment for life**, or **imprisonment up to 10 years**, and **fine**.

#### 6. Object and Rationale

##### 1. Protection of Human Life:

The law extends the right to life even to the **unborn child**.

##### 2. Moral and Social Concern:

Foeticide, especially **female foeticide**, is a deep-rooted social evil in India.

These provisions aim to **discourage gender-based abortions** and protect girl children.

##### 3. Balance with Medical Termination of Pregnancy (MTP) Act, 1971:

While **BNS** criminalizes illegal abortions, the **MTP Act** allows lawful abortions under specified medical conditions.

Thus, if the act is done **in good faith to save the mother's life** or **in compliance with the MTP Act**, it is **not punishable**.

#### 7. Constitutional and Legal Support

- **Article 21** – Right to Life includes protection of life even before birth.
- **Article 39(f)** – Directive Principle: Children must be given opportunities for healthy development.

- **Article 15(3)** – State may make special provisions for women and children.

## 8. Case Laws

### 1. **Suchita Srivastava v. Chandigarh Administration (2009)**

The Supreme Court held that a woman has a **reproductive right to make choices**, but such right must be balanced against the **protection of the unborn child** when the pregnancy has advanced.

### 2. **Vinod Soni & Anr. v. Union of India (2005)**

The Bombay High Court upheld the **Pre-Conception and Pre-Natal Diagnostic Techniques (Prohibition of Sex Selection) Act, 1994**, noting that **female foeticide violates the right to equality and life**.

### 3. **State of Maharashtra v. Madhukar Narayan Mardikar (1991)**

The Court emphasized the dignity and worth of women and children, underscoring the duty of the State to protect them from exploitation and violence.

## 9. Relation to Other Laws

| Related Law                         | Purpose                                                                                 |
|-------------------------------------|-----------------------------------------------------------------------------------------|
| <b>MTP Act, 1971 (amended 2021)</b> | Permits abortion under medical supervision for health, rape, or congenital abnormality. |
| <b>PCPNDT Act, 1994</b>             | Prohibits sex determination and prevents female foeticide.                              |
| <b>POCSO Act, 2012</b>              | Protects children after birth from sexual offences.                                     |
| <b>JJ Act, 2015</b>                 | Provides rehabilitation and adoption for abandoned or orphaned children.                |

## 10. Conclusion

The **Bharatiya Nyaya Sanhita (2023)** reaffirms India's commitment to the **protection of life from conception to birth**.

Sections **91–94** safeguard unborn and newborn children against unlawful destruction or killing, reflecting the State's duty under the Constitution and international human rights law.

By harmonizing with the **MTP Act** and **PCPNDT Act**, these provisions seek a balance between **women's reproductive rights** and the **child's right to life**, ensuring that no child — born or unborn — is deprived of the opportunity to live.

## Unit – III

# Child Labour – Constitutional, Statutory and Judicial Provisions

## Introduction

Child labour is one of the most serious social problems in India. It refers to the employment of children in any work that deprives them of their childhood, interferes with their education, and is harmful to their physical or mental development. The Indian legal system has always regarded child labour as a social evil and has made several constitutional, statutory, and judicial efforts to eradicate it.

The objective of these laws is to ensure that every child enjoys the right to education, health, and dignified development — as guaranteed under the **Constitution of India** and recognized under international conventions such as the **UN Convention on the Rights of the Child (1989)** and **ILO Conventions**.

### 1. Constitutional Provisions Relating to Child Labour



1. **Article 21 – Right to Life and Personal Liberty**

It includes the *right to live with human dignity*. The Supreme Court has expanded its scope to include the **right to education, health, and childhood care**, thereby indirectly prohibiting child labour.

2. **Article 23 – Prohibition of Traffic in Human Beings and Forced Labour**

Child labour often amounts to *forced labour*. Any exploitation of children through coercion or economic necessity violates this Article.

3. **Article 24 – Prohibition of Employment of Children in Factories**

It directly prohibits the employment of children below **14 years of age** in factories, mines, or any other hazardous employment.

→ It is an *absolute fundamental right* enforceable through writs under Article 32 or 226.

4. **Article 39(e) & (f) – Directive Principles of State Policy**

The State shall direct its policy to ensure that:

- Children are not abused or forced by economic necessity to enter vocations unsuited to their age or strength.
- Children are given opportunities and facilities to develop in a healthy manner and in conditions of freedom and dignity.

5. **Article 45 – Provision for Early Childhood Care and Education**

The State shall provide early childhood care and free education for all children until they complete the age of 14 years.

6. **Article 15(3)**

Permits the State to make special provisions for women and children, thereby justifying child welfare legislation.

7. **Article 21A – Right to Education (86th Amendment Act, 2002)**

Provides free and compulsory education for all children between the ages of **6 and 14 years**, thus addressing the root cause of child labour.

**2. Statutory Provisions – Child Labour (Prohibition and Regulation) Act, 1986**

The **Child Labour (Prohibition and Regulation) Act, 1986** is the principal legislation to curb child labour in India.

**Object of the Act**

To **prohibit the engagement of children below 14 years** in certain employments and to **regulate the conditions of work** of children in other occupations.

**Important Definitions**

- **Child:** A person who has not completed 14 years of age (Section 2(ii)).
- **Establishment:** Any place where industry, trade, business, or occupation is carried on.

**Provisions of the Act**

1. **Prohibition of Child Labour (Section 3)**

No child shall be employed in occupations and processes listed in the **Schedule** (such as bidi-making, carpet-weaving, match factories, mines, etc.).

2. **Regulation of Working Conditions (Sections 7–13)**

- Working hours: not more than **3 hours continuously** without rest.

- Total working time: **not more than 6 hours a day.**
- Weekly holidays and health/safety measures must be provided.

### 3. Penalties (Section 14)

- Employment of a child in prohibited occupation → **Imprisonment 3 months to 1 year, or fine ₹10,000–₹20,000, or both.**
- Repeat offence → **Imprisonment up to 2 years.**

### 4. Amendments

- The **Child Labour (Prohibition and Regulation) Amendment Act, 2016** widened the scope:
  - Prohibits employment of children below 14 years in *all occupations*, except in family enterprises after school hours.
  - Introduced the term “**adolescent**” (14–18 years) and prohibited their employment in *hazardous occupations*.
  - Made offences **cognizable** and introduced **rehabilitation funds**.

### 3. Other Allied Laws

#### 1. Factories Act, 1948 – Sections 67–75

Prohibits employment of children below 14 years in factories and regulates working hours of adolescents.

#### 2. Mines Act, 1952 – Section 45

Absolutely prohibits employment of children under 18 years in mines.

#### 3. Bonded Labour System (Abolition) Act, 1976

Frees all bonded labourers, including children, from exploitative labour contracts.

#### 4. Right of Children to Free and Compulsory Education Act, 2009

Ensures education for children aged 6–14 years, indirectly preventing child labour.

#### 5. Juvenile Justice (Care and Protection of Children) Act, 2015

Treats child labourers as *children in need of care and protection* and provides for their rehabilitation.

### 4. Judicial Pronouncements

#### 1. M.C. Mehta v. State of Tamil Nadu (1996)

Supreme Court directed the State to identify all child labourers and withdraw them from hazardous industries, provide them education, and recover compensation from employers.

#### 2. Bandhua Mukti Morcha v. Union of India (1984)

Court held that employing children in bonded labour violates **Articles 21 and 23** and ordered their release and rehabilitation.

#### 3. People’s Union for Democratic Rights v. Union of India (1982)

The Court ruled that non-payment of minimum wages or coercive employment of children amounts to *forced labour* under Article 23.

#### 4. Unnikrishnan J.P. v. State of Andhra Pradesh (1993)

Recognized **right to education** as part of the **right to life under Article 21**, strengthening the constitutional base against child labour.

### 5. International Efforts Influencing Indian Law

1. **ILO Convention No. 138 (1973)** – Minimum Age Convention.
2. **ILO Convention No. 182 (1999)** – Worst Forms of Child Labour Convention.
3. **UN Convention on the Rights of the Child (1989)** – Recognizes the child's right to be protected from economic exploitation.

India has ratified these conventions, influencing domestic child protection laws.

## 6. Causes of Child Labour

- Poverty and unemployment of parents
- Illiteracy and ignorance
- High demand for cheap labour
- Lack of access to education
- Weak enforcement of labour laws

## 7. Government and Policy Measures

- **National Policy on Child Labour (1987)** – Focuses on rehabilitation and education.
- **National Child Labour Project (NCLP)** – Provides bridge education, vocational training, and stipend for rescued children.
- **Integrated Child Protection Scheme (ICPS)** – Strengthens institutional care and rehabilitation.

## 8. Conclusion

Child labour is a violation of fundamental human rights and constitutional guarantees. Although India has comprehensive legislation and judicial protection, the real challenge lies in **effective enforcement and social awareness**.

A child should be in school, not in the workplace — this is the spirit of **Articles 21, 24, and 39 of the Constitution**.

Eradication of child labour requires a **multi-dimensional approach** involving education, poverty alleviation, and strict legal enforcement so that every child enjoys the right to a safe, dignified, and educated childhood.

# **Prohibition of Child Marriage Act, 2006**

## Introduction

Child marriage has been one of the major social evils in India, deeply rooted in tradition and poverty. It results in the **denial of education, health risks, and social exploitation** of children, especially girls.

To eradicate this evil, Parliament enacted the **Prohibition of Child Marriage Act, 2006**, replacing the earlier **Child Marriage Restraint Act, 1929**.

The 2006 Act is **stronger, more comprehensive**, and aims not merely to restrain but to **prohibit** child marriage and provide **protection and relief** to victims.

## Object and Purpose of the Act

1. To **prohibit solemnization of child marriages**.
2. To **protect and provide relief** to victims of child marriage.
3. To **make offences cognizable and non-bailable**.
4. To **appoint Child Marriage Prohibition Officers (CMPOs)** to prevent such marriages.

5. To align national law with **constitutional guarantees** and **international conventions** on child rights.

## Important Definitions (Section 2)

### 1. Child:

- A *male* who has not completed **21 years** of age.
- A *female* who has not completed **18 years** of age.

### 2. Child Marriage:

A marriage in which either of the contracting parties is a child.

### 3. Contracting Party:

Either of the parties whose marriage is being solemnized.

## Key Provisions of the Act

### 1. Punishment for Male Adult Marrying a Child (Section 9)

If a male adult (above 18 years) contracts a marriage with a child, he shall be punished with:

- **Imprisonment up to 2 years**, or
- **Fine up to ₹1,00,000**, or both.

### 2. Punishment for Performing or Conducting Child Marriage (Section 10)

Any person who performs, conducts, directs, or abets the marriage of a child is punishable with:

- **Imprisonment up to 2 years**, and/or
- **Fine up to ₹1,00,000**.

This includes priests, relatives, and others who help solemnize such marriage.

### 3. Punishment for Promoting or Permitting Solemnization (Section 11)

Any parent, guardian, or any person having charge of the child who **promotes or negligently permits** the marriage is liable to:

- **Imprisonment up to 2 years**, and/or
- **Fine up to ₹1,00,000**.

### 4. Child Marriage to be Voidable at the Option of the Contracting Party (Section 3)

A child marriage is **not automatically void**, but **voidable** at the option of the minor party.

- The child (on attaining majority) may file a **petition for annulment** within **2 years** of attaining majority.
- The court can grant a decree of **nullity**, declaring the marriage void.

### 5. Provision for Maintenance and Residence (Section 4)

If a child marriage is annulled, the **district court** may order:

- Maintenance for the female contracting party, and
- Residence until her remarriage or attainment of majority.

The amount is recoverable from the male contracting party or his guardians.

### 6. Custody and Legitimacy of Children (Section 5 & 6)

- Children born from such marriages are **legitimate**, even if the marriage is declared void.
- The court shall make proper orders for **custody, maintenance, and education** of such children.

## 7. Void Marriages (Section 12)

Certain child marriages are **automatically void**, if:

- The minor is taken or enticed away from lawful guardianship;
- The minor is forced or compelled;
- The minor is sold for marriage or trafficked for immoral purposes.

In such cases, no petition is required — the marriage is **null and void** from the beginning.

## 8. Appointment of Child Marriage Prohibition Officers (Section 16)

The State Government shall appoint **Child Marriage Prohibition Officers (CMPOs)** to:

- Prevent child marriages,
- Collect evidence for prosecution, and
- Advise and assist victims in seeking remedies.

## 9. Jurisdiction of Courts (Section 15)

Only the **District Court** has jurisdiction to entertain petitions under this Act.

All offences are **cognizable and non-bailable**, meaning police can arrest without warrant.

## Constitutional and International Basis

1. **Article 21 – Right to Life:** Ensures a life of dignity, health, and personal liberty.
2. **Article 23 & 24:** Prohibit exploitation of children in any form.
3. **Article 39(f):** Directs the State to ensure children grow up with dignity and moral freedom.
4. **UN Convention on the Rights of the Child (1989):** Recognizes marriage below 18 years as harmful to child development.
5. **CEDAW (1979):** India is a signatory; it mandates elimination of discrimination in marriage.

## Judicial Decisions

1. **Lajja Devi v. State (2012)**  
The Delhi High Court held that marriages of minors are **voidable**, not void, unless they fall under Section 12. The court emphasized protection of the minor's welfare.
2. **Independent Thought v. Union of India (2017)**  
The Supreme Court held that **sexual intercourse with a wife below 18 years amounts to rape**, even if married, strengthening the spirit of this Act and child protection.
3. **Kumar Soni v. State of Chhattisgarh (2019)**  
The Court reaffirmed that child marriage is not valid in the eyes of law and minors can seek annulment upon attaining majority.
4. **Seema v. Ashwani Kumar (2006)**  
The Supreme Court directed compulsory registration of marriages to prevent child marriage and ensure legal proof of age.

## Effects of the Act

- Stronger enforcement mechanism compared to the 1929 Act.
- Focuses on **protection and rehabilitation** of victims rather than mere punishment.
- Gives children the **right to annul** illegal marriages.
- Recognizes **legitimacy of children** born from such marriages.
- Makes offences **non-bailable and cognizable**, ensuring immediate police action.

## Critical Evaluation

Though progressive, challenges remain:

- Deep-rooted customs in rural areas,
- Lack of awareness and education,
- Social pressure and dowry practices,
- Poor implementation by authorities.

Legal prohibition must be supplemented with **education, empowerment, and economic support** for girls.

## Conclusion

The **Prohibition of Child Marriage Act, 2006** is a landmark reform aimed at protecting children's rights, dignity, and future.

It transforms the focus from restraining to **prohibiting** such marriages, ensuring that every child has a right to education, development, and a life free from exploitation.

When effectively enforced, it fulfills the constitutional vision under **Articles 14, 21, and 39(f)** — of building a society where every child can live and grow with dignity, free from the burden of premature marriage.

## **Child Prostitution and Immoral Traffic (Prevention) Act, 1956**

### Introduction

Prostitution is one of the oldest forms of human exploitation. When it involves **children**, it becomes the most heinous violation of human rights and dignity.

Child prostitution deprives children of their childhood, education, health, and moral development.

To address this, India enacted the **Suppression of Immoral Traffic in Women and Girls Act, 1956**, later amended and renamed as the **Immoral Traffic (Prevention) Act, 1956** (ITPA).

It was enacted to give effect to **Article 23 of the Constitution** and India's obligation under the **UN Convention for the Suppression of Traffic in Persons (1950)**.

### Object and Purpose of the Act

1. To **prevent trafficking and sexual exploitation** of women and children.
2. To **rescue and rehabilitate victims** of prostitution.
3. To **punish traffickers, brothel keepers, and procurers**.
4. To implement **constitutional guarantees** against exploitation.

The Act does **not criminalize prostitution per se**, but prohibits its **commercialization and organized exploitation**.

### Important Definitions (Section 2)

1. **Brothel:**

Includes any house, room, or place used for sexual exploitation or abuse for the gain of another person.

2. **Prostitution:**

Sexual exploitation or abuse of persons for commercial purposes.

3. **Prostitute:**

A person who engages in prostitution.

4. **Child:**

A person who has not completed **16 years** of age.

*(Amended definition after the 1986 amendment; earlier it was 18 for girls.)*

5. **Minor:**

A person who has completed **16 years but not 18 years** of age.

## **Offences and Punishments under the Act**

### **1. Keeping a Brothel or Allowing Premises to be Used as a Brothel (Section 3)**

- Any person who keeps or manages a brothel, or allows his/her premises to be used as a brothel, is punishable with:
  - **Imprisonment of 1 to 3 years and fine up to ₹10,000** for the first conviction.
  - **Imprisonment up to 5 years** for subsequent convictions.
- If a **child or minor** is found in the brothel → **Imprisonment not less than 7 years** (up to life imprisonment).

### **2. Living on the Earnings of Prostitution (Section 4)**

Any person who lives wholly or partly on the earnings of prostitution of another person is punishable with:

- **Imprisonment up to 2 years or fine up to ₹1,000**, or both.
- If the person exploited is a **child or minor**, the punishment increases to **7–10 years**.

### **3. Procuring, Inducing, or Taking Person for Prostitution (Section 5)**

Anyone who procures or induces a child or minor for prostitution is punishable with:

- **Imprisonment of 7 years to life**, and fine.
- Even attempted procurement is punishable.

### **4. Detaining a Person in Premises Where Prostitution is Carried On (Section 6)**

If a person detains another, especially a **child or minor**, for prostitution:

- Punishable with **7 years to life imprisonment**.

### **5. Prostitution in or Near Public Places (Section 7)**

Prostitution is prohibited **within 200 meters** of:

- Any public place like schools, temples, hospitals, or hotels.
- Punishment: **Imprisonment up to 3 months**, or fine, or both.

If the prostitute is a **child or minor**, punishment extends to **7–10 years**.

### **6. Seduction or Soliciting for Purpose of Prostitution (Section 8)**

Any person who seduces or solicits for prostitution in a public place is punishable with **imprisonment up to 6 months** for first offence, and **1 year** for subsequent offences.

## **7. Rescue and Rehabilitation (Sections 16–21)**

- Magistrate may order the **rescue of a child or minor** from a brothel.
- The rescued person is to be kept in a **protective home** or **rehabilitation centre**.
- The State Government must provide **protective homes** for such victims.

### **Role of Police and Magistrates**

- Police officers can enter and search suspected premises **without warrant** (Section 15).
- Magistrates have powers to order **rescue, custody, and rehabilitation**.
- Special police officers are appointed to handle offences under the Act.

### **Constitutional Support**

1. **Article 23:** Prohibits traffic in human beings and forced labour.
2. **Article 21:** Right to life includes the right to live with dignity.
3. **Article 24:** Protects children from hazardous employment and exploitation.
4. **Directive Principles:** Article 39(e) & (f) – Obligation on State to protect children from abuse and exploitation.

### **Judicial Pronouncements**

1. **Gaurav Jain v. Union of India (1997)**  
The Supreme Court directed the Government to prepare schemes for **rehabilitation of prostitutes and their children**, emphasizing their right to dignity and education.
2. **Vishal Jeet v. Union of India (1990)**  
The Court held that prostitution and trafficking of women and children violate Article 21. Directed the government to take preventive measures and rehabilitate victims.
3. **State of Maharashtra v. Madhukar Narayan Mardikar (1991)**  
The Court held that even a prostitute has the right to privacy and dignity under Article 21.
4. **Prajwala v. Union of India (2015)**  
The Supreme Court laid guidelines for rehabilitation, vocational training, and safe homes for rescued victims of trafficking.

### **International Obligations**

1. **UN Convention for the Suppression of Traffic in Persons (1950).**
2. **Convention on the Rights of the Child (1989)** – Articles 34 and 35 prohibit sexual exploitation and trafficking of children.
3. **Convention on the Elimination of All Forms of Discrimination Against Women (CEDAW), 1979.**
4. **Palermo Protocol (2000)** – Prevent, Suppress and Punish Trafficking in Persons, especially Women and Children.

India is a party to all these conventions, and the ITPA reflects these global standards.

### **Causes of Child Prostitution**



- Poverty and illiteracy
- Gender inequality
- Child trafficking and abduction
- Social stigma and abandonment
- Organized criminal networks

### Government Initiatives

- **Ujjawala Scheme (2007):** For prevention, rescue, and rehabilitation of trafficked women and children.
- **Nirbhaya Fund (2013):** For protection and empowerment of women and child victims.
- **Anti-Human Trafficking Units (AHTUs):** Established in every district.
- **Integrated Child Protection Scheme (ICPS):** Rehabilitation and care for rescued children.

### Critical Analysis

The Immoral Traffic (Prevention) Act, 1956 focuses on **prohibition and rehabilitation**, not victim punishment. However, it faces challenges:

- Weak enforcement,
- Social stigma against victims,
- Lack of coordination between police and welfare agencies.

There is a need for **stronger victim-centric policies**, rehabilitation programs, and public awareness to eliminate this form of exploitation.

### Conclusion

Child prostitution is a violation of human dignity, morality, and the fundamental right to life.

The **Immoral Traffic (Prevention) Act, 1956**, read with **Articles 21 and 23 of the Constitution**, provides a strong legal framework to punish traffickers and protect victims.

However, the law alone cannot end this evil — it must be combined with **education, rehabilitation, and social empowerment** of women and children.

Thus, the ultimate goal is to create a society where **no child is bought, sold, or exploited**, fulfilling the constitutional dream of equality and dignity for all.

## Unit – IV

### The Protection of Children from Sexual Offences (POCSO) Act, 2012

#### ➤ Object and Meaning of the POCSO Act

#### Meaning

The **Protection of Children from Sexual Offences Act, 2012 (POCSO Act)** is a **comprehensive law enacted to protect children** (below 18 years of age) from **sexual abuse, sexual harassment, and pornography**, while safeguarding the child's interest at every stage of the judicial process.

It provides a **child-friendly approach** for recording evidence, investigation, and speedy trial of offences through **Special Courts**.

This Act came into force on **14th November 2012** (Children's Day).

## Object and Purpose of the Act

The POCSO Act was enacted with the following **main objectives**:

1. **Protection of Children** from all forms of sexual assault, harassment, and exploitation.
2. **Special provisions** for protecting the **dignity and privacy** of child victims.
3. To establish **child-friendly judicial procedures** and **speedy trials**.
4. To ensure that the **best interest of the child** is the primary consideration during all legal proceedings.
5. To fulfill **India's obligations** under international conventions such as:
  - **UN Convention on the Rights of the Child (1989)**
  - **Optional Protocol on the Sale of Children, Child Prostitution and Child Pornography (2000)**
  - **UN Convention on the Elimination of All Forms of Discrimination against Women (CEDAW, 1979)**

## Need for the POCSO Act

Before the enactment of the POCSO Act, Indian Penal Code (IPC) provisions like **Sections 354, 375, and 376** covered sexual offences, but they:

- Did not cover **boys as victims** (only females).
- Had no **specific definitions** of “sexual assault,” “harassment,” or “pornography.”
- Did not provide **child-sensitive procedures** for investigation and trial.

Hence, there was a strong need for a **gender-neutral, comprehensive, and child-focused law**—leading to the introduction of the POCSO Act in 2012.

## Salient Features of the POCSO Act

1. **Gender-Neutral Law** –  
Applies to **both male and female** child victims.
2. **Defines Various Forms of Sexual Offences** –  
Such as:
  - Penetrative Sexual Assault
  - Aggravated Penetrative Sexual Assault
  - Sexual Assault
  - Sexual Harassment
  - Use of children for pornographic purposes
3. **Child-Friendly Procedures** –  
Statements of the child are to be recorded in a safe environment, preferably at the child's home or a familiar place, **in the presence of a parent or trusted adult**.
4. **Special Courts (Section 28)** –  
For speedy trial and protection of the child's privacy.  
The identity of the child must **not be disclosed** in media (Section 23).

5. **Mandatory Reporting (Section 19)** –

Any person (teacher, doctor, relative, etc.) who has knowledge of a sexual offence against a child **must report it to the police**, failing which they can be punished under Section 21.

6. **Presumption of Guilt (Section 29)** –

Once a person is charged under the Act, **the burden of proof** lies on the accused to prove innocence.

7. **Protection of Privacy** –

Media is prohibited from disclosing the child's name, address, or any identifying details (Section 23).

8. **Special Public Prosecutors** –

To conduct cases under the Act (Section 32).

### **Definition of 'Child'**

As per **Section 2(d)** of the POCSO Act:

"Child" means any person **below the age of 18 years**.

This definition is **gender-neutral** and covers **both boys and girls**.

### **Constitutional and Legal Basis**

The POCSO Act gives effect to several constitutional rights:

1. **Article 21:** Right to life includes right to live with dignity and protection from abuse.
2. **Article 14:** Equality before law – protection irrespective of gender.
3. **Article 15(3):** Permits special laws for children and women.
4. **Article 39(e) & (f):** Directive Principles – State must protect children from exploitation and moral abandonment.

### **Judicial Support & Landmark Cases**

1. **Alakh Alok Srivastava v. Union of India (2018)**

The Supreme Court directed governments to set up **exclusive POCSO Courts** in every district and ensure speedy trial.

2. **State of Punjab v. Gurmit Singh (1996)**

The Court emphasized that sexual assault cases require **sensitivity and protection** of victim's dignity.

3. **Attorney General for India v. Satish (2021)**

The Supreme Court ruled that **skin-to-skin contact is not necessary** for sexual assault; intent and circumstances matter.

*(Reversed the controversial Bombay HC judgment which said "skin-to-skin" contact was needed.)*

4. **Nipun Saxena v. Union of India (2018)**

The Supreme Court directed that **identity of rape and POCSO victims** must not be disclosed in media.

### **Child-Friendly Procedures (Sections 24–27)**

1. **Recording of statement** in a safe and non-threatening environment.
2. No child should be detained in a police station overnight.
3. The child should **not be repeatedly called for questioning**.
4. Trial should be completed within **one year** from the date of cognizance.

5. The court should ensure the child's **comfort and confidence** during proceedings.

## Punishments (Overview)

| Type of Offence                       | Section      | Punishment                                    |
|---------------------------------------|--------------|-----------------------------------------------|
| Penetrative Sexual Assault            | Sec. 3 & 4   | Imprisonment of <b>7 years to life</b> , fine |
| Aggravated Penetrative Sexual Assault | Sec. 5 & 6   | <b>10 years to life</b> , fine                |
| Sexual Assault (non-penetrative)      | Sec. 7 & 8   | <b>3–5 years</b> , fine                       |
| Sexual Harassment                     | Sec. 11 & 12 | <b>3 years</b> , fine                         |
| Use of Child for Pornography          | Sec. 13–15   | <b>5 years to life</b> , fine                 |
| Failure to Report Offence             | Sec. 21      | <b>6 months to 1 year</b> , fine              |

## POCSO (Amendment) Act, 2019

Important changes:

1. **Enhanced punishments**, including **death penalty** for aggravated penetrative sexual assault.
2. **Punishment for storage or distribution** of child pornography.
3. Protection extended to **digital and online sexual exploitation**.

## Critical Evaluation

The POCSO Act is one of the most progressive child protection laws in India.

It ensures:

- Gender neutrality,
- Speedy trial,
- Privacy protection,
- Mandatory reporting, and
- Child-sensitive procedures.

However, challenges include:

- Lack of awareness among parents and teachers,
- Delays in trial due to backlog of cases,
- Poor rehabilitation and counselling facilities for victims.

For effective implementation, the State must ensure **proper training of police, prosecutors, and judges**, and **psychological support** for child victims.

## Conclusion

The **POCSO Act, 2012** is a **milestone in protecting children** from sexual offences. It not only punishes offenders but also prioritizes the **best interest of the child** through a sensitive and speedy judicial process.

It fulfills both **constitutional mandates** and **international obligations**, aiming to create a safe environment where every child can live with dignity, free from fear and exploitation.

# **Sexual Offences Against Children and Punishment**

(Under the Protection of Children from Sexual Offences Act, 2012)

## **Introduction**

The **POCSO Act, 2012** was enacted to address the **rising incidents of sexual crimes against children** in India. It provides **specific and detailed definitions** of sexual offences and prescribes **strict punishments** according to the seriousness of the crime.

The Act recognizes that sexual offences against children can occur in many forms — **penetrative, non-penetrative, verbal, or exploitative** — and therefore defines each category separately.

## **Classification of Sexual Offences under the POCSO Act**

The sexual offences under the Act are divided mainly into the following categories:

1. **Penetrative Sexual Assault** – Sections 3 & 4
2. **Aggravated Penetrative Sexual Assault** – Sections 5 & 6
3. **Sexual Assault (Non-penetrative)** – Sections 7 & 8
4. **Aggravated Sexual Assault** – Sections 9 & 10
5. **Sexual Harassment of a Child** – Sections 11 & 12
6. **Using a Child for Pornographic Purposes** – Sections 13–15

### **1. Penetrative Sexual Assault (Sections 3 & 4)**

#### **Definition (Section 3)**

A person is said to commit *penetrative sexual assault* if:

- He penetrates his penis into the vagina, mouth, urethra or anus of a child, or
- Inserts any object or a part of the body into these parts, or
- Manipulates any part of the child's body to cause such penetration, or
- Applies his mouth to the child's private parts.

Thus, it covers **vaginal, oral, and anal sexual assaults**, even with objects, and includes both male and female victims.

#### **Punishment (Section 4)**

- **Imprisonment not less than 7 years**, which may extend to **life imprisonment**,
- And **fine**.

### **2. Aggravated Penetrative Sexual Assault (Sections 5 & 6)**

#### **Definition (Section 5)**

The assault becomes **aggravated** when committed by:

- Police officer, public servant, doctor, teacher, or a person in position of trust or authority;
- Member of armed forces;
- On a child below **12 years**;

- During communal or natural calamity;
- By a relative, stepfather, stepmother, or guardian;
- When the child becomes pregnant, or infected with HIV or other disease.

#### **Punishment (Section 6)**

- **Rigorous imprisonment not less than 10 years**, which may extend to **life imprisonment**,
- And **fine**.
- (*After 2019 Amendment*) – May include **death penalty** for certain aggravated cases.

### **3. Sexual Assault (Sections 7 & 8)**

#### **Definition (Section 7)**

A person commits *sexual assault* if he:

- Intentionally touches the vagina, penis, anus, or breast of the child,
- Or makes the child touch him or any other person,
- With sexual intent,
- Without penetration.

Thus, this offence is **non-penetrative**, but still sexual in nature.

#### **Punishment (Section 8)**

- **Imprisonment not less than 3 years**, which may extend to **5 years**,
- And **fine**.

### **4. Aggravated Sexual Assault (Sections 9 & 10)**

#### **Definition (Section 9)**

A *sexual assault* becomes **aggravated** if committed by:

- Persons in authority such as police officers, public servants, teachers, doctors, etc.,
- On a child below 12 years,
- By a person who has previously committed a similar offence.

#### **Punishment (Section 10)**

- **Rigorous imprisonment not less than 5 years**, which may extend to **7 years**,
- And **fine**.

### **5. Sexual Harassment of a Child (Sections 11 & 12)**

#### **Definition (Section 11)**

A person is said to commit **sexual harassment** if he:

- Utters words or makes sounds or gestures with sexual intent;
- Shows any object or part of body to a child with sexual intent;
- Makes the child exhibit his or her body;

- Repeatedly follows, contacts, or threatens the child with sexual intent.

## Punishment (Section 12)

- Imprisonment up to 3 years,
- And fine.

## 6. Using a Child for Pornographic Purposes (Sections 13–15)

### Definition (Section 13)

A person commits this offence if he:

- Uses a child in **any pornographic film, advertisement, or media**,
- Or **stores, distributes, or circulates** pornographic material involving children.

### Punishment (Sections 14 & 15)

| Type of Offence                                       | Punishment                                                      |
|-------------------------------------------------------|-----------------------------------------------------------------|
| Using child for pornographic purposes                 | Up to 5 years imprisonment, and fine                            |
| Second or subsequent conviction                       | Up to 7 years imprisonment, and fine                            |
| Using pornographic material to commit or abet offence | Punishment for <b>offence + 5 years additional</b> imprisonment |

## 7. Abetment and Attempt to Commit an Offence (Sections 16–18)

- **Abetment (Section 16):** Includes instigating, aiding, or conspiring to commit any offence under the Act.
- **Attempt (Section 18):** Punishable with imprisonment up to **half of the maximum term** for that offence.

## 8. Aggravating Factors for Higher Punishment

The Act provides **stricter punishment** where:

- The child is below 12 years of age,
- The offender holds a position of authority or trust,
- The act causes grievous injury, pregnancy, or death of the child,
- The offender commits the act repeatedly or habitually.

## 9. Case Laws

### 1. Attorney General for India v. Satish (2021)

The Supreme Court held that “**skin-to-skin contact is not necessary** to constitute sexual assault.” Any act done with sexual intent amounts to sexual assault.

### 2. Eera v. State (NCT of Delhi), (2017)

The Supreme Court emphasized that the **POCSO Act must be interpreted liberally** to achieve its purpose of protecting children.

### 3. State of Maharashtra v. Bandu @ Daulat (2018)

The Court upheld **life imprisonment** for aggravated penetrative sexual assault under Section 6.

## 10. Presumption of Guilt (Section 29)

Under the POCSO Act:

“When a person is prosecuted for committing or abetting or attempting to commit an offence under this Act, the Court shall presume that such person has committed or abetted or attempted to commit the offence, unless the contrary is proved.”

Thus, the **burden of proof shifts to the accused**, which is an **exception** to the general criminal law principle of “innocent until proven guilty.”

### 11. Protection of Identity (Section 23)

- The **name, address, photograph, or any details** of the child cannot be published.
- Violation of this provision attracts **up to 1 year imprisonment and fine**.

### 12. Objective of Punishment

The punishment provisions aim to:

1. Deter offenders from committing sexual crimes against minors.
2. Ensure the safety and dignity of every child.
3. Reinforce the message that **any sexual act with a minor is a grave crime**, regardless of consent.

### Conclusion

The **POCSO Act, 2012** clearly defines and categorizes all forms of sexual offences against children, providing **strict punishments** and **child-friendly procedures** to ensure justice.

By being **gender-neutral** and **victim-centered**, it fulfills the **constitutional mandate under Articles 21 and 39(f)** to protect children’s right to life, dignity, and development.

This law represents India’s strong stand against **child sexual abuse** and ensures that the perpetrators are punished with the **severity such crimes deserve**.

## Types of Sexual Offences under the POCSO Act, 2012

### Introduction

The **Protection of Children from Sexual Offences (POCSO) Act, 2012** was enacted to provide a **comprehensive legal framework** to protect children (below 18 years) from **sexual abuse and exploitation**.

The Act defines various **types of sexual offences** in a structured and detailed way — something that the **Indian Penal Code (IPC)** did not do earlier.

It recognizes both **penetrative and non-penetrative offences**, **sexual harassment**, and **use of children for pornography**, ensuring a **gender-neutral** and **child-sensitive** approach.

### Classification of Sexual Offences under POCSO

The POCSO Act broadly classifies sexual offences into **five major categories**:

| Category                      | Relevant Sections | Nature of Offence                                                           |
|-------------------------------|-------------------|-----------------------------------------------------------------------------|
| 1. Penetrative Sexual Assault | Sec. 3 & 4        | Involves penetration of sexual organs or objects into the body of the child |



| Category                                  | Relevant Sections | Nature of Offence                                                            |
|-------------------------------------------|-------------------|------------------------------------------------------------------------------|
| 2. Aggravated Penetrative Sexual Assault  | Sec. 5 & 6        | More serious form, committed by persons in authority or causing serious harm |
| 3. Sexual Assault (Non-penetrative)       | Sec. 7 & 8        | Physical contact with sexual intent without penetration                      |
| 4. Aggravated Sexual Assault              | Sec. 9 & 10       | Non-penetrative assault under aggravating circumstances                      |
| 5. Sexual Harassment                      | Sec. 11 & 12      | Verbal, visual, or behavioral harassment with sexual intent                  |
| 6. Use of Child for Pornographic Purposes | Sec. 13–15        | Exploitation of children for pornographic content, filming, or circulation   |

## 1. Penetrative Sexual Assault (Sections 3 & 4)

### Definition (Section 3)

A person commits penetrative sexual assault when he:

- Penetrates his penis into the vagina, mouth, urethra, or anus of a child; or
- Inserts any object or part of the body into the child's private parts; or
- Manipulates the child's body to cause such penetration; or
- Applies his mouth to the child's genitals.

👉 **Essence:** Any form of penetration, even partial, amounts to *penetrative sexual assault*.

### Punishment (Section 4)

- Imprisonment **not less than 7 years**, which may extend to **life imprisonment**,
- And **fine**.

## 2. Aggravated Penetrative Sexual Assault (Sections 5 & 6)

### Definition (Section 5)

An assault is considered **aggravated** when committed by a person:

- In a position of trust or authority (police officer, public servant, teacher, doctor, etc.);
- On a **child below 12 years**;
- By a **family member, guardian, or relative**;
- When the child becomes **pregnant or infected with HIV**;
- During **natural calamity or communal violence**; or
- Against a **child with mental or physical disability**.

### Punishment (Section 6)

- **Rigorous imprisonment not less than 10 years**, which may extend to **life imprisonment**,
- And **fine**.

- (2019 Amendment) allows **death penalty** in extreme cases.

### 3. Sexual Assault (Non-penetrative) (Sections 7 & 8)

#### Definition (Section 7)

A person commits *sexual assault* if he:

- Touches the vagina, penis, anus, or breast of the child,
- Or makes the child touch him or any other person,
- With **sexual intent**,
- Without penetration.

👉 **Essence:** It involves **physical contact with sexual intent** but no penetration.

#### Punishment (Section 8)

- Imprisonment **not less than 3 years**, which may extend to **5 years**,
- And **fine**.

### 4. Aggravated Sexual Assault (Sections 9 & 10)

#### Definition (Section 9)

It is *aggravated* when committed:

- By a **police officer, doctor, teacher, or public servant**,
- On a **child below 12 years**,
- On a **child with disability**, or
- During **armed conflict, disaster, or institutional care**.

#### Punishment (Section 10)

- **Rigorous imprisonment not less than 5 years**, which may extend to **7 years**,
- And **fine**.

### 5. Sexual Harassment (Sections 11 & 12)

#### Definition (Section 11)

A person commits *sexual harassment* when he:

- Utters words, makes sounds, or gestures with sexual intent;
- Shows any object or part of the body to the child;
- Makes the child exhibit his/her body;
- Repeatedly follows or contacts the child with sexual intent.

#### Punishment (Section 12)

- **Imprisonment up to 3 years**,
- And **fine**.

### 6. Use of Child for Pornographic Purposes (Sections 13–15)

## Definition (Section 13)

If a person:

- Uses a child in **any pornographic film, media, or advertisement**,
- Or **stores, distributes, or circulates** such material —  
then it is an offence under this section.

## Punishment (Section 14 & 15)

| Offence Type                                          | Punishment                                                              |
|-------------------------------------------------------|-------------------------------------------------------------------------|
| Use of child for pornography                          | Up to <b>5 years imprisonment</b> and <b>fine</b>                       |
| Repeated offence                                      | Up to <b>7 years imprisonment</b> and <b>fine</b>                       |
| Using such material to commit or abet another offence | Punishment for that offence <b>plus 5 years additional imprisonment</b> |

## 7. Attempt and Abetment (Sections 16–18)

- **Abetment (Section 16):** Any person who helps, encourages, or conspires to commit an offence under this Act.
- **Attempt (Section 18):** Punishable with imprisonment **up to half of the maximum punishment** for the completed offence.

## 8. Important Judicial Interpretations

1. **Attorney General for India v. Satish (2021)**  
The Supreme Court held that “**skin-to-skin contact is not necessary**” to constitute sexual assault.  
Any act done with **sexual intent** is sufficient.
2. **Eera v. State (NCT of Delhi), (2017)**  
The Court clarified that the POCSO Act must be interpreted **liberally** to achieve its protective purpose.
3. **State of Maharashtra v. Bandu @ Daulat (2018)**  
Upheld **life imprisonment** for aggravated penetrative sexual assault.

## 9. Presumption of Guilt (Section 29)

Under POCSO:

The Court shall presume the accused is guilty of the offence unless proven otherwise.

This is a **special rule of evidence** — reversing the general presumption of innocence — to ensure **better protection of children**.

## 10. Significance

- Ensures **child-friendly justice** for victims.
- Provides **gender-neutral protection**.
- Establishes **clear classification and punishment** for each kind of sexual abuse.
- Promotes **swift trials** through special courts.

## Conclusion

The POCSO Act, 2012, creates a **comprehensive structure of sexual offences** against children, clearly distinguishing between types based on **nature, severity, and circumstances**.

By defining offences broadly — from **penetrative assaults** to **harassment and pornography** — it ensures **no form of sexual exploitation is left unpunished**.

Thus, the Act fulfills both **constitutional guarantees** and **international commitments** for protecting children’s right to safety, dignity, and life.

## **Use of Child for Pornographic Purposes and Punishment Thereof**

*(Sections 13 to 15, Protection of Children from Sexual Offences Act, 2012)*

### **1. Introduction**

The digital age has made children more vulnerable to **online sexual exploitation, pornographic filming, and distribution of explicit content**.

To address this growing menace, the **POCSO Act, 2012** specifically includes **Sections 13–15**, which deal with the **use of children for pornographic purposes and related punishments**.

The main aim of these provisions is to **criminalize every stage** of such exploitation — from production to possession, circulation, and even viewing of such material.

### **2. Meaning of ‘Use of Child for Pornographic Purposes’**

According to **Section 13 of the POCSO Act**, a person is said to use a child for pornographic purposes if he/she:

- Uses a child in **any form of media**, including **print, electronic, digital, or internet**,
- For the purpose of **sexual gratification** by depicting **explicit sexual acts or conduct**, or
- **Induces, coerces, or exploits** a child to perform sexual acts for the purpose of creating pornographic material.

#### **Key idea:**

Any act of **involving a child below 18 years** in the **making, viewing, circulation, or storage** of sexual content amounts to a *pornographic offence* under this Act.

### **3. Punishment under the POCSO Act**

#### **(i) Section 14 — Punishment for Using Child for Pornographic Purposes**

| <b>Offence Type</b>   | <b>Punishment</b>                                 |
|-----------------------|---------------------------------------------------|
| First conviction      | Imprisonment <b>up to 5 years</b> and <b>fine</b> |
| Subsequent conviction | Imprisonment <b>up to 7 years</b> and <b>fine</b> |

#### **(ii) Section 15 — Punishment for Storing or Using Pornographic Material Involving a Child**

If a person **stores, distributes, or downloads** pornographic material involving a child **for personal use** and **not for commercial purpose**, the punishment is:

- **Imprisonment up to 3 years**,
- **Or fine**,
- **Or both**.

👉 However, if such material is **used to commit, abet, or facilitate** any sexual offence under the Act, then the offender shall be **punished with the punishment prescribed for that offence, in addition to 5 years of imprisonment.**

### Example

- If a person uses a child to create a pornographic video and later commits **sexual assault** using the same material,  
→ he will be punished for **sexual assault (Sec. 8) + additional 5 years under Sec. 15.**

## 4. Important Judicial Interpretations

### 1. In Re: Exploitation of Children in Orphanages, Kerala (2017)

The Supreme Court emphasized that the POCSO Act must be read harmoniously with the **Information Technology Act, 2000**, particularly **Section 67B**, to effectively deal with online child pornography.

### 2. Eera v. State (NCT of Delhi), (2017)

The Court stressed that *the Act must be given a liberal interpretation* to protect children from modern forms of abuse, including **digital exploitation and circulation of explicit content.**

## 5. Relationship with the IT Act, 2000

The **Information Technology Act, 2000** complements the POCSO Act in this area.

- **Section 67B, IT Act:**  
Punishes anyone who:
  - Publishes or transmits material depicting children in sexually explicit acts;
  - Creates, collects, seeks, browses, downloads, or advertises such content.

👉 Punishment:

- **Up to 5 years imprisonment and fine up to ₹10 lakh (first conviction);**
- **Up to 7 years imprisonment and fine up to ₹10 lakh (second conviction).**

Thus, both Acts together ensure **strong cyber protection for children.**

## 6. Key Objectives of Sections 13–15

- To **prevent use of children in pornographic content.**
- To **criminalize every act** of creation, storage, circulation, or use.
- To **ensure accountability** for both *producers and consumers* of such content.
- To promote **child safety in digital environments.**

## 7. Summary Table

| Section Provision                                                                | Punishment                                            |
|----------------------------------------------------------------------------------|-------------------------------------------------------|
| <b>Sec. 13</b> Defines use of child for pornographic purposes                    | —                                                     |
| <b>Sec. 14</b> Punishment for using child for pornography                        | 5 yrs (1st) / 7 yrs (repeat) + fine                   |
| <b>Sec. 15</b> Storing/using such material or committing other offences using it | Up to 3 yrs + fine / +5 yrs extra if used for offence |

## 8. Distinguishing Features

- **Gender-neutral:** Applies to both male and female children.
- **Covers online and offline media.**
- **Extends liability** even to those who *view or store* such content.
- **In addition to IT Act offences**, not in substitution.

## 9. Conclusion

The inclusion of Sections 13 to 15 in the **POCSO Act, 2012** reflects India's strong stance against **child pornography and digital sexual exploitation**.

By criminalizing the **use, possession, and dissemination** of such material, the law ensures that children's dignity, innocence, and privacy are fully protected.

The combined force of **POCSO Act** and **IT Act** thus provides a **comprehensive framework** to combat both **physical** and **cyber-based sexual offences** against children.

## Abetment and Attempt to Commit an Offence under the POCSO Act, 2012

### 1. Introduction

The POCSO Act not only punishes those who directly commit sexual offences against children but also those who **abet** or **attempt** to commit such offences.

This ensures that **every stage of criminal intent or assistance** in crimes involving children is severely dealt with.

The relevant provisions are contained in **Sections 16 and 17** of the Act.

### 2. Abetment under Section 16

#### Meaning of Abetment

Under Section 16, **abetment** means any act by which a person:

1. **Instigates** another person to commit an offence under the Act; or
2. **Engages in a conspiracy** to commit such an offence; or
3. **Intentionally aids** another person to commit such an offence.

This definition is similar to that given in **Section 107 of the Indian Penal Code (IPC)**, but under POCSO, it applies specifically to **offences against children**.

#### Illustrations

- If A convinces B to assault a minor sexually — A has **abetted** the offence.
- If C provides money or a place to commit a sexual offence with a child — C has **aided** the offence.

### 3. Punishment for Abetment – Section 17

Section 17 provides that **whoever abets any offence under this Act shall be punished with the same punishment as is provided for the commission of that offence**.

👉 Thus, **abetment = same punishment as the main offence**.

For example:

- If a person abets the offence of **penetrative sexual assault (Section 4)**, he shall face the **same punishment** as if he had committed that offence himself.

#### 4. Attempt to Commit an Offence – Section 18

Section 18 deals with **attempt to commit offences under the POCSO Act**.

##### Definition

When a person, **intending to commit an offence under this Act**, **does any act towards its commission**, but the offence is **not completed**, he is said to have **attempted** to commit the offence.

##### Punishment for Attempt

A person who attempts to commit an offence under the Act shall be punished with:

- **Imprisonment up to one-half of the punishment** prescribed for the actual offence,
- And **fine** as prescribed for that offence.

##### Illustration

If a person tries to sexually assault a child but is stopped before completing the act — this constitutes an **attempt**, and he will be punished with **half of the punishment** of sexual assault under Section 8.

#### 5. Case Laws

##### 1. **State of Maharashtra v. Mohd. Yakub (1980) 3 SCC 57**

The Supreme Court clarified the difference between **preparation** and **attempt**:

- *Preparation* is arranging means or measures for committing an offence.
- *Attempt* begins when an act is done directly towards the commission of the offence after preparation.

→ This principle applies to offences under POCSO as well.

##### 2. **State of Punjab v. Major Singh (1967 AIR 63)**

It was held that even the **slightest physical contact** with sexual intent against a child amounts to an **attempt to commit sexual assault**.

#### 6. Legal Distinction: Preparation vs. Attempt

| Stage              | Explanation                                       | Punishment               |
|--------------------|---------------------------------------------------|--------------------------|
| <b>Preparation</b> | Planning or arranging tools to commit the offence | Usually not punishable   |
| <b>Attempt</b>     | Direct act towards committing the offence         | Punishable under Sec. 18 |

#### 7. Importance of Sections 16–18

- These provisions **close all loopholes** by punishing not just offenders but also those who assist or try to commit such crimes.
- They act as a **deterrent** to individuals who plan or help others in exploiting children.
- The law recognizes that **the intent and initiation of harm** are as dangerous as the act itself.

#### 8. Combined Effect

| Section Nature of Offence                                    | Punishment                        |
|--------------------------------------------------------------|-----------------------------------|
| <b>Sec. 16</b> Abetment (instigation, conspiracy, or aiding) | Same as offence abetted           |
| <b>Sec. 17</b> Punishment for abetment                       | Same as the principal offence     |
| <b>Sec. 18</b> Attempt to commit an offence                  | Half of the punishment prescribed |

## 9. Conclusion

The provisions of **Sections 16 to 18** of the POCSO Act ensure that **no person who even tries or helps to harm a child** escapes liability.

By equating abetment with the principal offence and penalizing attempts, the Act establishes a **comprehensive framework of protection** for children.

It reflects the legislative intent that **child safety must be absolute** — from the stage of **planning** to **execution** of any sexual offence.

## Procedure for Reporting of Cases under the POCSO Act, 2012

### 1. Introduction

The POCSO Act, 2012 ensures **child-friendly reporting procedures** to make it easier for children and others to **report sexual offences** without fear or hesitation.

The purpose of these provisions is to **encourage immediate reporting**, ensure **confidentiality**, and protect the **dignity of the child** during the entire legal process.

The relevant provisions are **Sections 19 to 22** of the Act.

### 2. Section 19 – Reporting of Offences

#### Who Can Report

Any person — not necessarily the victim — who has:

- **Knowledge**, or
- **Apprehension** that a sexual offence is likely to be committed against a child,

**must provide such information to:**

👉 The **Special Juvenile Police Unit (SJPU)** or the **local police**.

This makes the POCSO Act **mandatory in reporting** such offences.

#### Mode of Reporting

- The report may be made **in person, orally, or in writing**.
- If the report is **oral**, it must be **reduced to writing**, read over to the informant, and **signed** by the person giving the information.
- A copy of the report must be given **free of cost** to the informant.

#### Immediate Duties of Police

As soon as the police receive information:

1. They must **record the statement of the child** in a **child-friendly manner**.
2. Ensure the **child is not detained overnight** in the police station.



3. Arrange for **immediate medical examination** of the child under Section 27.
4. **Inform the Child Welfare Committee (CWC) and Special Court** without delay.

### 3. Section 20 – Reporting by Media, Hospital Staff, etc.

If any person, including:

- **Media personnel,**
- **Hotel staff,**
- **Lodging or photographic establishments, or**
- **Hospitals,**

comes across material or incidents suggestive of a sexual offence against a child, they are legally bound to **report the same** to the local police or SJPU.

Failure to do so attracts punishment under Section 21.

### 4. Section 21 – Punishment for Failure to Report or Record a Case

#### (i) Failure to Report (General Public)

Any person who fails to report an offence under Section 19 or 20:

- Shall be **punished with imprisonment up to 6 months**, or
- **Fine**, or
- **Both.**

#### (ii) Failure by Police Officer

If a **police officer** fails to record a case, he shall be punished with **imprisonment up to 1 year** and **fine**.

👉 This ensures **accountability** among law enforcement officials.

### 5. Section 22 – Protection of Persons Making Report in Good Faith

- **No civil or criminal liability** shall lie against a person who reports an offence in **good faith**, even if later found untrue.
- However, if a person **knowingly makes a false complaint** or **provides false information**, he/she can be punished with:
  - **Imprisonment up to 6 months**, or
  - **Fine**, or
  - **Both.**

Thus, the Act discourages **false or malicious reporting**, while protecting genuine informants.

### 6. Case Laws

#### 1. In Re: Exploitation of Children in Orphanages in Kerala (2017)

The Supreme Court directed that **every person or authority** aware of a child sexual abuse case **must report it immediately**, and failure would invite prosecution under Section 21.

## 2. **Kailash v. State of Rajasthan (2016)**

The Court held that the **purpose of Section 19** is to ensure **timely action** and **medical assistance** to the child, so any delay in reporting must be justified with sufficient cause.

## 7. Objectives of Reporting Procedure

- To make **reporting mandatory** and prevent suppression of offences.
- To ensure **speedy action** by police and other authorities.
- To **maintain confidentiality** and avoid further trauma to the child.
- To **protect informants** acting in good faith.
- To create a **responsible environment** for the protection of children.

## 8. Summary Table

| Section Provision                                  | Key Point                                  |
|----------------------------------------------------|--------------------------------------------|
| <b>Sec. 19</b> Reporting of offences               | Mandatory reporting to police/SJPU         |
| <b>Sec. 20</b> Duty of certain persons to report   | Media, hospitals, hotels, etc. must report |
| <b>Sec. 21</b> Punishment for failure to report    | Up to 6 months / 1 year (for police)       |
| <b>Sec. 22</b> Protection for good faith reporting | No liability for genuine reports           |

## 9. Conclusion

The **reporting mechanism** under the POCSO Act plays a vital role in protecting children from sexual offences. By making reporting mandatory and protecting informants, the law ensures **early detection, medical care, and justice for victims**.

These provisions create a **zero-tolerance framework** towards child sexual abuse, strengthening India's commitment to child safety and welfare.

## **Procedure for Recording Statement of the Child under the POCSO Act, 2012**

### 1. Introduction

The **Protection of Children from Sexual Offences Act, 2012 (POCSO)** ensures that the child victim or witness is treated with **utmost sensitivity and care** during investigation and trial.

Section 24 lays down a **special, child-friendly procedure** for recording the statement of the child by the police to **prevent fear, trauma, or intimidation**.

The goal is to make the legal process **supportive and non-threatening** for the child.

### 2. Relevant Provision – Section 24

Section 24(1) to (8) of the POCSO Act provides a **detailed procedure** that must be followed while recording a child's statement.

### 3. Key Provisions Explained

#### (i) Statement by a Woman Police Officer (Sub-section 1)

- The statement of the child must be recorded by a **woman police officer, not below the rank of sub-inspector**.

- This ensures that the child feels safe and comfortable while narrating the incident.

#### (ii) Child-Friendly Atmosphere (Sub-section 2)

- The police officer must record the statement at a **place where the child ordinarily resides**, or at a **place of the child's choice**, such as their home or school.
- The officer should be in **plain clothes**, not in uniform.
- The officer must ensure the **child is not frightened** or made to feel like a criminal.

#### (iii) Presence of a Trusted Person (Sub-section 3)

- The police officer should ensure that the **parent or guardian** of the child is present.
- If the child does not have parents or they are the accused, a **trusted person or relative or Child Welfare Committee representative** must be present.

#### (iv) Avoidance of Aggressive Questioning (Sub-section 4)

- The officer should **not be aggressive or intimidating** while questioning the child.
- Questions must be **simple, age-appropriate, and respectful**, ensuring that the child understands and responds freely.

#### (v) Prohibition of Night-time Summons (Sub-section 5)

- The child should **not be called to the police station at night**.
- Examination must be conducted **at the child's residence or a place of safety** between **8 a.m. to 8 p.m.** only.

#### (vi) Statement to be Reduced to Writing (Sub-section 6)

- The child's statement should be **recorded in the exact words** spoken by the child and **reduced to writing**.
- A **copy of the statement** must be **given to the child or guardian** free of cost.

#### (vii) Assistance of Interpreter or Translator (Sub-section 7)

- If the child has **speech or hearing impairment**, or speaks a **different language**, an **interpreter, translator, or special educator** must assist during recording.

#### (viii) Medical and Psychological Support (Sub-section 8)

- After the statement, the child should be **immediately sent for medical examination** under Section 27.
- The child should also receive **counselling and psychological support** if required.

### 4. Case Laws

#### 1. **Virender v. State (NCT of Delhi), 2009 (Delhi High Court)**

The Court emphasized that the **statement of a child victim must be recorded in an environment of trust**, preferably at home or hospital, and not in police custody.

#### 2. **In Re: Exploitation of Children in Orphanages, Kerala (2017)**

The Supreme Court directed that **police officers handling POCSO cases must be specially trained** in child psychology to handle victims with care and sensitivity.

#### 3. **Satish Ragde v. State of Maharashtra (2021)**

The Court held that **minor inconsistencies** in the child's statement do not affect the credibility of the child, as trauma may influence memory and narration.

## 5. Objectives of Section 24

- To make the process **non-intimidating and trauma-free**.
- To ensure the child's **comfort, dignity, and privacy**.
- To encourage **accurate and voluntary disclosure** of facts.
- To ensure **child participation** in the justice process without fear.

## 6. Summary Table

| Aspect             | Provision under Section 24          |
|--------------------|-------------------------------------|
| Recording Officer  | Woman police officer (not below SI) |
| Place of Recording | Child's home / safe place           |
| Presence           | Parent / guardian / trusted person  |
| Time               | 8 a.m. – 8 p.m. (no night summons)  |
| Behaviour          | Friendly, non-aggressive            |
| Interpreter        | Allowed if needed                   |
| Medical Care       | Immediate after recording           |

## 7. Conclusion

Section 24 of the POCSO Act reflects the legislature's commitment to a **child-centric justice system**.

By ensuring that statements are recorded in a **friendly, safe, and supportive environment**, the law protects children from **secondary trauma** and ensures that their voices are heard clearly in court.

This approach upholds the spirit of the Act — **"the best interest of the child"**.

## [Special Courts – Procedure, Powers and Recording of Evidence under the POCSO Act, 2012](#)

*(Sections 28 to 38)*

### 1. Introduction

The **Protection of Children from Sexual Offences Act, 2012 (POCSO)** creates a **special judicial mechanism** for the speedy and sensitive trial of offences against children.

For this purpose, the Act provides for the establishment of **Special Courts** under **Section 28**, which are empowered to conduct trials in a **child-friendly and time-bound manner**.

The objective is to **avoid delay, reduce trauma**, and ensure **justice within the best interest of the child**.

### 2. Establishment of Special Courts (Section 28)

- The **State Government**, in consultation with the **Chief Justice of the High Court**, shall designate a **Sessions Court** in every district as a **Special Court** to try offences under the POCSO Act.
- These courts may also try **other related offences** (e.g., under IPC or IT Act) if committed in the same transaction.
- The court must have **special training and sensitivity** in handling child victims and witnesses.

### 3. Appointment of Special Public Prosecutor (Section 32)

- Every Special Court shall be assisted by a **Special Public Prosecutor (SPP)**, appointed by the State Government.
- The SPP must have **at least 7 years of experience** as an advocate and possess **knowledge of child protection laws**.
- The SPP ensures that the **case is presented effectively** while **protecting the child's dignity and rights** during trial.

#### 4. Procedure for Recording Evidence (Sections 33–38)

The POCSO Act prescribes **special rules** for the conduct of trial and recording of evidence to make the process **non-threatening** and **child-sensitive**.

##### (i) Child-Friendly Procedure (Section 33(4) & (5))

- The Special Court shall ensure that **the child is not called repeatedly** to testify.
- The Court must create a **comfortable environment** for the child to depose freely.
- The identity of the child must remain **confidential** at all times.
- The trial shall be conducted **in camera (private hearing)** and not open to the general public.

##### (ii) Recording of Evidence within Prescribed Time (Section 35)

- The **evidence of the child** must be recorded **within 30 days** of the Special Court taking cognizance of the offence.
- The **entire trial** should be completed **within one year** from the date of cognizance. This ensures **speedy justice** and minimizes prolonged trauma for the child.

##### (iii) Assistance of Support Person or Guardian

- The child is entitled to have a **parent, guardian, or support person** during court proceedings.
- If the child does not have anyone, the **Child Welfare Committee (CWC)** shall appoint a suitable support person.

##### (iv) Avoidance of Direct Confrontation with Accused

- The child should **not come face to face** with the accused at any stage of the trial.
- Courts may use **video-conferencing** or **screen partitions** to protect the child's emotional well-being.

##### (v) Cross-Examination in a Friendly Manner

- The Special Court must ensure that **cross-examination** is conducted with **decency and sensitivity**.
- No **character assassination** or **indecent questions** should be allowed.
- The **child's age and maturity** should be considered during questioning.

##### (vi) Provision for Interpreter or Special Educator (Section 38)

- If the child has **hearing, speech, or intellectual disabilities**, an **interpreter, translator, or special educator** must assist during the trial.
- The Special Court ensures that the child **understands every question** and **communicates answers clearly**.

#### 5. Protection of Identity (Section 33(7))

- The **identity of the child** (name, address, school, photograph, or any detail that may reveal identity) **cannot be published** in any media.
- Violation of this rule is punishable under **Section 23 of the Act** with imprisonment up to **6 months** and/or fine.
- This aims to **protect the child from stigma and public embarrassment**.

## 6. In-Camera Trial (Section 37)

- All trials under the POCSO Act are to be conducted **in-camera**, i.e., in private.
- Only the **child, parents, lawyers, and court officials** may be present.
- The court may allow a **person of trust or confidence** to accompany the child during testimony.
- This prevents **media sensationalism** and **emotional distress** for the victim.

## 7. Case Laws

### 1. **State of Karnataka v. Puttaraja (2004)**

The Supreme Court emphasized that **trials of sexual offences must be conducted in-camera** to protect the dignity of the victim and encourage truthful testimony.

### 2. **Nipun Saxena v. Union of India (2018)**

The Court laid down detailed **guidelines for maintaining the anonymity of child victims**, prohibiting publication of their names or details in any media platform.

### 3. **Eera v. State (NCT of Delhi) (2017)**

The Court observed that judges handling POCSO cases must adopt **child-friendly and psychologically sensitive approaches** during evidence collection.

## 8. Role and Powers of the Special Court

| Role / Power                 | Explanation                                                     |
|------------------------------|-----------------------------------------------------------------|
| <b>Cognizance</b>            | Can take cognizance of offences without committal by Magistrate |
| <b>Recording of Evidence</b> | Must record within 30 days                                      |
| <b>Completion of Trial</b>   | Within one year from cognizance                                 |
| <b>In-Camera Trial</b>       | Mandatory to ensure privacy                                     |
| <b>Protective Measures</b>   | Shielding child from direct view of accused                     |

**Appointment of Support Staff** Interpreters, translators, educators, counsellors

## 9. Objectives of Special Court Procedure

- To ensure **speedy disposal** of child sexual offence cases.
- To **minimize trauma** and protect the **mental health** of the child.
- To maintain **confidentiality and privacy**.
- To create a **non-intimidating courtroom environment**.
- To provide **comprehensive justice** under a specialized framework.

## 10. Conclusion

The establishment of **Special Courts under the POCSO Act, 2012** represents a major step towards **child-centric justice** in India.

By providing a **specialized, sensitive, and speedy trial mechanism**, the law protects children from the emotional burden of the judicial process.

The child-friendly procedures — such as in-camera trials, restricted identity disclosure, and interpreter support — reflect India's commitment to upholding the **dignity, safety, and welfare of every child**.

## **Juvenile Delinquency in India: Meaning, Causes and History of Juvenile Justice with Special Reference to India**

### **1. Meaning of Juvenile Delinquency**

The term “**Juvenile Delinquency**” refers to **acts or omissions committed by a child or minor which are considered offences under the law**.

In simple words, when a person below a certain age (usually **under 18 years**) commits an act that would be a crime if done by an adult, it is called **juvenile delinquency**.

#### **Legal Meaning**

According to **Section 2(35) of the Juvenile Justice (Care and Protection of Children) Act, 2015**,

“Juvenile” or “Child in conflict with law” means a child who has not completed **eighteen years of age** on the date of commission of an offence.

#### **Definition by Scholars**

- **Healy and Bronner:** “A juvenile delinquent is a child who behaves in a way that is dangerous or anti-social and violates legal or social norms.”
- **Walter Reckless:** “Delinquency is the failure of a child to abide by laws, customs, and traditions of society.”

### **2. Characteristics of Juvenile Delinquency**

- Involves **violation of law** by a minor (below 18 years).
- Actions may include **theft, assault, vandalism, drug abuse, truancy, or immoral behaviour**.
- The motive is usually **impulsive** rather than planned.
- The law treats juveniles **not as criminals**, but as **children needing care, guidance, and rehabilitation**.

### **3. Causes of Juvenile Delinquency**

Juvenile delinquency does not arise from a single cause. It results from a **combination of psychological, social, economic, and environmental factors**.

Major causes include:

#### **(i) Family Background**

- **Broken homes**, parental neglect, lack of supervision, or domestic violence.
- **Absence of affection** or moral guidance from parents often pushes children towards crime.
- **Example:** Children from families with frequent quarrels or separation often seek belonging in gangs.

#### **(ii) Poverty and Unemployment**

- Economic hardship forces children to **engage in theft, smuggling, or begging** for survival.

- Poor families cannot provide proper education or moral discipline.

### (iii) Bad Company and Peer Influence

- Association with **criminal gangs or anti-social peers** often leads to imitation of illegal acts.
- Adolescents are **emotionally unstable** and easily influenced.

### (iv) Lack of Education

- Illiteracy limits moral understanding and employment opportunities.
- Schools sometimes fail to inculcate **discipline and moral values**.

### (v) Urbanization and Industrialization

- Migration to cities often causes **slum living**, overcrowding, and exposure to crime.
- The **breakdown of traditional family structures** leads to weak social control.

### (vi) Mass Media and Internet Influence

- Exposure to **violence, pornography, and substance abuse** through media and internet impacts children negatively.
- Cyber delinquency is a **modern form of juvenile offence**.

### (vii) Psychological and Biological Factors

- Emotional instability, mental disorders, or hormonal imbalance can influence delinquent behaviour.
- Some children exhibit **aggression or impulsivity** due to psychological trauma.

## 4. Types of Juvenile Delinquency

| Type                           | Explanation / Example                                             |
|--------------------------------|-------------------------------------------------------------------|
| <b>Individual Delinquency</b>  | Crime committed by a single child, e.g., theft, assault.          |
| <b>Group Delinquency</b>       | Crime committed in a gang or group.                               |
| <b>Organized Delinquency</b>   | Involvement in criminal networks such as smuggling or drug trade. |
| <b>Situational Delinquency</b> | Committed due to circumstances like hunger, fear, or coercion.    |

## 5. History and Development of Juvenile Justice in India

India's juvenile justice system evolved from **colonial laws** to a **child-centric rehabilitative framework**.

### (i) Pre-Independence Period

- The first juvenile law was the **Apprentices Act, 1850**, which aimed to provide vocational training to convicted juveniles.
- The **Reformatory Schools Act, 1897** established schools for reformation instead of imprisonment.
- **Bombay Children Act, 1924** was one of the earliest laws to provide separate treatment for juvenile offenders.

### (ii) Post-Independence Period

#### (a) Children Act, 1960



- First national law applicable to Union Territories.
- Provided for **separate treatment** for “delinquent” and “neglected” children.
- Focused on **care, education, and rehabilitation** instead of punishment.

#### **(b) Juvenile Justice Act, 1986**

- First comprehensive national legislation for juvenile justice.
- Implemented the **Beijing Rules (1985)** of the United Nations.
- Applied to both “children in need of care and protection” and “children in conflict with law.”

#### **(c) Juvenile Justice (Care and Protection of Children) Act, 2000**

- Enacted to **comply with the UN Convention on the Rights of the Child (1989)**.
- Increased age of juveniles to **below 18 years** for both boys and girls.
- Introduced **Juvenile Justice Boards (JJB)** and **Child Welfare Committees (CWC)**.

#### **(d) Juvenile Justice (Care and Protection of Children) Act, 2015**

- Enacted after the **Nirbhaya Case (2012)** raised concerns over serious offences by juveniles.
- Allows **children aged 16–18 years** to be tried as adults **for heinous offences** (like murder, rape).
- Established a more **structured, rehabilitative, and child-friendly judicial process**.
- Introduced **foster care, adoption, and aftercare services** for children.

### **6. Juvenile Justice System in India – Key Components**

1. **Juvenile Justice Board (JJB)** – Deals with cases of children in conflict with law.
  - Comprises a **Metropolitan Magistrate** and **two social workers (one female)**.
  - Ensures **child-friendly inquiry**, not a criminal trial.
2. **Child Welfare Committee (CWC)** – Handles children in need of care and protection.
  - Responsible for **rescue, rehabilitation, and restoration** of abandoned or abused children.
3. **Observation Homes / Special Homes / Shelter Homes** – Provide care, counselling, and vocational training.

### **7. Case Laws on Juvenile Delinquency**

1. **Pratap Singh v. State of Jharkhand (2005)**  
The Supreme Court held that the **age of the offender** at the **date of commission of offence** determines whether he is a juvenile.
2. **Jitendra Singh alias Babboo Singh v. State of U.P. (2013)**  
The Court emphasized that the purpose of juvenile justice law is **reformation and rehabilitation**, not retribution.
3. **Mukesh & Anr. v. State (NCT of Delhi) (2017) – Nirbhaya Case**  
One of the accused was below 18 years; despite public outrage, he was treated under **juvenile law**, reaffirming India’s commitment to **child rights and reformative justice**.

### **8. Objectives of Juvenile Justice System**

- To protect the rights of children under **Articles 14, 15(3), 21, 39(e), and 39(f)** of the Constitution.
- To **reform and rehabilitate** rather than punish.
- To ensure **speedy and child-friendly trial**.
- To provide **education, counselling, and vocational support** for reintegration into society.

## 9. Conclusion

Juvenile delinquency is a **social as well as legal issue**, demanding a **rehabilitative approach** rather than punitive action.

The **Juvenile Justice (Care and Protection of Children) Act, 2015** ensures that children who commit offences are treated **with compassion, not condemnation**.

The focus remains on **reformation, rehabilitation, and reintegration**, aligning with **India's constitutional and international commitments** to child welfare.

## [Juvenile Justice \(Care and Protection of Children\) Act, 2015 \(with Latest Amendments\)](#)

### 1. Introduction

The **Juvenile Justice (Care and Protection of Children) Act, 2015** (hereinafter referred to as the **JJ Act, 2015**) is India's principal legislation for dealing with **children in conflict with law** and **children in need of care and protection**.

It replaced the **Juvenile Justice Act, 2000**, bringing significant changes after the **Nirbhaya case (2012)**, where one of the accused was a juvenile. The 2015 Act balances **child rights protection** with **public safety** by introducing stricter provisions for heinous offences committed by juveniles aged **16–18 years**.

### 2. Objectives of the Act

The main objectives of the JJ Act, 2015 are:

1. To ensure **care, protection, development, treatment, and rehabilitation** of neglected and delinquent children.
2. To adopt a **child-friendly approach** during adjudication and disposal of cases.
3. To **reform** rather than punish juvenile offenders.
4. To align India's law with international obligations under the **UN Convention on the Rights of the Child (1989)**.
5. To provide for **adoption, foster care, sponsorship, and after-care** of children.
6. To establish **Juvenile Justice Boards (JJB)** and **Child Welfare Committees (CWC)** at district levels for effective implementation.

### 3. Structure of the Act

The Act is divided into **10 Chapters** and **112 Sections**.

It covers both categories of children:

- **Children in Conflict with Law** (those who commit offences), and
- **Children in Need of Care and Protection** (abandoned, orphaned, abused, or neglected).

### 4. Important Definitions (Section 2)

| Term                                        | Meaning                                                                                                             |
|---------------------------------------------|---------------------------------------------------------------------------------------------------------------------|
| <b>Child</b>                                | A person who has not completed <b>18 years of age</b> .                                                             |
| <b>Child in Conflict with Law</b>           | A child alleged or found to have committed an offence before attaining 18 years of age.                             |
| <b>Child in Need of Care and Protection</b> | Includes orphans, abandoned children, victims of abuse, and children found working in contravention of labour laws. |
| <b>Heinous Offence</b>                      | Offence with <b>minimum punishment of 7 years or more</b> under any law.                                            |
| <b>Observation Home</b>                     | A temporary home for children during inquiry.                                                                       |
| <b>Special Home</b>                         | Institution for long-term rehabilitation of juveniles found guilty.                                                 |

## 5. Key Features of the JJ Act, 2015

### (i) Classification of Offences (Section 2(33))

Offences committed by juveniles are divided into:

1. **Petty Offences** – Imprisonment up to 3 years (e.g., theft).
2. **Serious Offences** – Imprisonment between 3 to 7 years.
3. **Heinous Offences** – Imprisonment of 7 years or more (e.g., rape, murder).

For **heinous offences**, juveniles aged **16–18 years** may be tried as **adults**, after a preliminary assessment by the Juvenile Justice Board.

### (ii) Juvenile Justice Board (Sections 4–9)

- Every district must have a **Juvenile Justice Board (JJB)**.
- Composition: **Metropolitan Magistrate or Judicial Magistrate (First Class) + two social workers (one female)**.
- Functions:
  - Inquire into offences committed by children.
  - Conduct preliminary assessment for 16–18-year-old juveniles in heinous offences.
  - Ensure **child-friendly inquiry** and rehabilitation measures.

### (iii) Child Welfare Committee (Sections 27–30)

- Every district must also have a **Child Welfare Committee (CWC)** consisting of **one Chairperson and four members** (at least one woman).
- Functions:
  - Take care of **children in need of care and protection**.
  - Order **rehabilitation, restoration, or adoption**.
  - Monitor child welfare institutions and foster homes.

### (iv) Rehabilitation and Social Reintegration (Chapter IV)

- Focus on **education, skill development, counselling, and vocational training**.

- Children are placed in **Observation Homes, Special Homes, or Place of Safety** depending on their category.
- Introduction of **after-care services** for children leaving institutional care after 18 years.

#### **(v) Adoption (Chapter VIII – Sections 56–73)**

- The 2015 Act provides a **comprehensive legal framework for adoption**.
- **Central Adoption Resource Authority (CARA)** is designated as the **statutory body** to regulate and monitor adoption procedures.
- Recognizes **three types of adoption**:
  1. **By Indian citizens**,
  2. **By non-resident Indians**, and
  3. **By foreign citizens** (inter-country adoption).

This replaced the earlier system under the Guardians and Wards Act, 1890.

#### **(vi) Offences Against Children (Chapter IX)**

The Act criminalizes:

- Sale and procurement of children for any purpose (Sec. 81).
- Corporal punishment in child-care institutions.
- Use of children for begging or drug trafficking.
- Exploitation of children by staff or management of child institutions.

Punishments are **strict**, ensuring accountability of both individuals and institutions.

#### **(vii) Special Provisions for Heinous Offences by Children (Sections 15–21)**

- For juveniles aged **16–18 years**, the **Juvenile Justice Board** conducts a **preliminary assessment** of:
  - Mental capacity,
  - Physical ability,
  - Circumstances of the offence, and
  - Understanding of its consequences.
- If the Board concludes that the child understood the nature of the crime, the case is transferred to the **Children's Court** for trial as an adult.
- However, **death penalty and life imprisonment without remission are prohibited** for juveniles.

#### **(viii) Foster Care and Sponsorship**

- The Act introduces **Foster Care** (temporary placement in a family) and **Sponsorship** (financial support) for children.
- This promotes **family-based care** instead of institutionalization.

#### **(ix) Appeal and Revision (Sections 101–105)**

- Appeals from JJB or CWC orders lie to the **Children's Court**.

- Further appeal may be filed before the **High Court**.

## 6. Latest Amendments – 2021 Amendment Act

The **Juvenile Justice (Amendment) Act, 2021** brought several important reforms:

1. **Empowered District Magistrates (DMs)** to issue adoption orders (earlier done by courts) for speedy disposal.
2. **Enhanced role of DM** in supervising functioning of Child Care Institutions (CCIs).
3. **Classification of certain offences** (punishable up to 7 years) as **non-cognizable** to reduce police overreach.
4. Strengthened **monitoring and accountability** of child welfare institutions.
5. Ensured that **no child is placed in a CCI without proper inquiry** by the CWC.

## 7. Constitutional and International Basis

- **Article 15(3)** – Special provisions for children.
- **Article 39(e) & (f)** – Protection of children from exploitation and moral abandonment.
- **Article 21** – Right to life and personal liberty includes right to live with dignity.
- **UN Convention on the Rights of the Child, 1989** – Basis for India's child justice framework.

## 8. Important Case Laws

1. **Pratap Singh v. State of Jharkhand (2005)**  
The age of the offender at the date of the offence determines juvenility.
2. **Subramanian Swamy v. Raju (2014)**  
The Supreme Court upheld that **juveniles cannot be tried as adults** under the 2000 Act even for heinous crimes committed before the 2015 Act.
3. **Mukesh & Anr. v. State (NCT of Delhi) (2017 – Nirbhaya Case)**  
Led to the 2015 Act's change allowing **16–18-year-olds** to be tried as adults for heinous crimes.
4. **Shilpa Mittal v. State of NCT of Delhi (2020)**  
Clarified the classification of "heinous offences" and directed that cases not covered under the 2015 Act be treated as "serious offences."

## 9. Importance of the Act

- Balances **rehabilitation of juveniles** with **societal security**.
- Protects rights of both **children in conflict with law** and **children in need of care and protection**.
- Provides **speedy justice, child-friendly procedures**, and **strong institutional mechanisms**.
- Represents India's **commitment to child welfare and restorative justice**.

## 10. Conclusion

The **Juvenile Justice (Care and Protection of Children) Act, 2015** is a **progressive and comprehensive law** that aims to **reform, rehabilitate, and reintegrate** juveniles into society rather than punish them.

With the **2021 amendments**, the system became more **accountable, efficient, and transparent**, ensuring that **every child—whether offender or victim—is treated with dignity and compassion**.

The Act embodies the principle that **"every child can change if given proper care and opportunity."**

# Definition of Juvenile, Juveniles in Conflict with Law and Neglected Children

(Under the Juvenile Justice (Care and Protection of Children) Act, 2015)

## 1. Meaning of “Juvenile” or “Child”

The Juvenile Justice (Care and Protection of Children) Act, 2015 defines and distinguishes the terms **child**, **juvenile**, and **juvenile in conflict with law** for proper classification and treatment.

### Statutory Definition (Section 2(12))

“**Child**” means a person who has not completed **eighteen years of age**.

Thus, any person below 18 years is legally a **child** under the Act.

### Meaning of “Juvenile”

Though the 2015 Act mainly uses the word *child*, the term **juvenile** is often used in legal discourse for a **child who has committed an offence**.

Hence, every juvenile is a child, but every child is not necessarily a juvenile in conflict with law.

## 2. Juvenile in Conflict with Law

### Statutory Definition (Section 2(13))

“**Child in conflict with law**” means a child who is alleged or found to have committed an offence and who has not completed eighteen years of age on the date of commission of such offence.

### Explanation

This category covers:

- Children **arrested or accused** of committing an offence.
- Children **under inquiry** by the Juvenile Justice Board (JJB).
- Children **found guilty** and sent for rehabilitation.

The determination of “juvenility” is always made **with reference to the date of the offence**, not the date of trial.

### Judicial Interpretation

1. **Pratap Singh v. State of Jharkhand (2005 SC)**  
– The age on the date of the offence decides juvenility.
2. **Hari Ram v. State of Rajasthan (2009 SC)**  
– Even if the person attains majority during trial, he is entitled to protection of juvenile law if he was below 18 years on the date of offence.

## 3. Categories of Offences for Juveniles

The Act divides offences into three classes for juveniles:

| Category        | Punishment Range           | Examples                        |
|-----------------|----------------------------|---------------------------------|
| Petty Offence   | Imprisonment up to 3 years | Theft, simple hurt              |
| Serious Offence | 3 – 7 years                | Causing grievous hurt, burglary |
| Heinous Offence | 7 years or more            | Rape, murder                    |

Children aged **16–18 years** committing **heinous offences** may be tried as **adults**, but only after a **preliminary assessment** by the JJB under Section 15.

#### 4. Children in Need of Care and Protection (Neglected Children)

##### Statutory Definition (Section 2(14))

A “child in need of care and protection” means a child who:

1. Is found without any home or settled place of abode and without any visible means of subsistence;
2. Is found working in contravention of labour laws or begging;
3. Resides with a person (including guardian) who has injured, exploited or neglected the child;
4. Is mentally or physically challenged or suffering from terminal illness and has no support;
5. Has a parent or guardian who is unfit or incapacitated to care for the child;
6. Is found vulnerable and likely to be inducted into drug abuse, trafficking or prostitution;
7. Is victim of armed conflict, civil unrest or natural calamity;
8. Has been or is likely to be abused, tortured or exploited for sexual or illegal acts.

Such children are popularly called **neglected or destitute children**, and they are produced before the **Child Welfare Committee (CWC)**, not the JJB.

#### 5. Difference Between “Juvenile in Conflict with Law” and “Neglected Child”

| Basis                 | Juvenile in Conflict with Law                                        | Child in Need of Care and Protection                        |
|-----------------------|----------------------------------------------------------------------|-------------------------------------------------------------|
| Nature of Involvement | Child has <b>committed or alleged to have committed an offence</b> . | Child is <b>victim of neglect, abuse, or exploitation</b> . |
| Authority Concerned   | Juvenile Justice Board (JJB)                                         | Child Welfare Committee (CWC)                               |
| Objective             | Rehabilitation through legal inquiry and counselling.                | Rescue, protection, and rehabilitation.                     |
| Institutions          | Observation Home / Special Home                                      | Shelter Home / Children’s Home                              |
| Outcome               | Reformative measures, not punishment                                 | Restoration to family or adoption                           |

#### 6. Treatment and Care

##### For Juveniles in Conflict with Law (Sections 10–26)

- To be placed in **Observation Homes** during inquiry.
- No joint detention with adults.
- The JJB conducts **inquiry, counselling, and rehabilitation**, not a criminal trial.
- Sent to **Special Homes** for long-term reform.

##### For Neglected / Abandoned Children (Sections 30–44)

- Produced before the **CWC** within 24 hours.
- Placed in **Children’s Homes or Shelter Homes**.

- CWC decides **rehabilitation** through adoption, foster care, sponsorship, or restoration.
- Emphasis on **education, health, and emotional support**.

## 7. Rights of Both Categories

Both groups are entitled to:

- **Right to protection from abuse and exploitation.**
- **Right to free legal aid and counselling.**
- **Right to privacy and dignity during proceedings.**
- **Right to speedy inquiry and rehabilitation.**

These rights derive from **Articles 21, 39(e), 39(f)** of the Constitution and **UN Convention on the Rights of the Child, 1989**.

## 8. Important Case Laws

1. **Arnit Das v. State of Bihar (2000 SC)** – The relevant date for determining juvenility is the date of offence.
2. **Raju v. State of Haryana (2019 SC)** – The purpose of the JJ Act is reform, not retribution.
3. **Salil Bali v. Union of India (2013 SC)** – The Court upheld the constitutionality of the JJ Act and stressed its rehabilitative aim.

## 9. Conclusion

The **Juvenile Justice Act, 2015** recognizes that **children differ from adults in maturity and responsibility**.

While **juveniles in conflict with law** require correctional treatment, **neglected or abused children** need care and protection.

The Act ensures both are handled in a **humane, reformatory, and child-friendly manner**, reaffirming the constitutional principle that *“every child deserves a chance to reform and live with dignity.”*

## [Special Procedure under the Juvenile Justice \(Care and Protection of Children\) Act, 2015](#)

### 1. Introduction

The Juvenile Justice (Care and Protection of Children) Act, 2015 lays down a **special procedure** for dealing with **children in conflict with law**.

The goal is **reformation, rehabilitation, and reintegration**, not punishment.

The procedure is **child-friendly**, distinct from the **Criminal Procedure Code**, and based on the **principle of best interest of the child** (Section 3).

### 2. Authorities under the Act

Two main authorities ensure proper procedure:

| Authority                            | Deals with                                     | Main Role                                      |
|--------------------------------------|------------------------------------------------|------------------------------------------------|
| <b>Juvenile Justice Board (JJB)</b>  | <i>Children in conflict with law</i>           | Inquiry, assessment, and rehabilitation orders |
| <b>Child Welfare Committee (CWC)</b> | <i>Children in need of care and protection</i> | Rescue, protection, and placement in homes     |

We'll focus here on the **JJB** and its special procedure.



### 3. Constitution of the Juvenile Justice Board (Section 4)

#### Composition

- **Metropolitan Magistrate / First Class Judicial Magistrate** (as Principal Magistrate), and
- **Two social workers**, at least one of whom shall be a **woman**.

#### Objective

To ensure that proceedings are **non-adversarial**, **child-friendly**, and focused on **rehabilitation** rather than retribution.

### 4. Special Procedure for Children in Conflict with Law

The procedure has **distinct stages** from apprehension to rehabilitation.

#### Stage 1: Apprehension of the Child (Section 10)

- No child is to be **arrested like an adult criminal**.
- Police must inform the **parents or guardian** and the **Probation Officer** immediately.
- Child must be placed in an **Observation Home**, not a jail.
- The child must be produced **before the JJB within 24 hours**.

#### Stage 2: Preliminary Assessment (Section 15)

This step applies **only to children aged 16–18 years** who have committed a **heinous offence**.

The **JJB conducts a preliminary assessment** to decide whether:

- The child had the **mental and physical capacity** to commit the offence,
- The child could **understand the consequences**, and
- The offence was committed in a **circumstance of maturity or influence**.

If satisfied, the JJB may transfer the case to the **Children's Court** for trial as an adult (Section 18(3)).

#### Stage 3: Inquiry by the Board (Section 14)

- All inquiries must be **completed within four months** (extendable to six).
- Proceedings are **informal**—no cross-examination or strict procedure like a criminal trial.
- The Board examines social background, family, and environment.
- **Social Investigation Report** (SIR) is prepared by the **Probation Officer**.

#### Stage 4: Dispositional Orders (Section 18)

After inquiry, the JJB passes **orders for rehabilitation**, not conviction or punishment.

The possible **dispositional measures** include:

1. **Admonition and counselling**
2. **Group counselling or community service**
3. **Fine or compensation to victim**
4. **Probation under supervision of a Probation Officer**

5. **Placement in a Special Home** for a period not exceeding **three years**

6. **Rehabilitation through education, vocational training, or skill development**

No juvenile can be sentenced to death or life imprisonment without the possibility of release.

(Article 21 & Section 21 of the Act)

#### **Stage 5: Rehabilitation and Social Reintegration (Sections 39–46)**

- Rehabilitation is the **core objective** of the Act.
- Implemented through:
  - **Children's Homes and Special Homes**
  - **Fit Persons / Fit Facilities**
  - **Foster Care, Adoption, Sponsorship, and After-care programmes**
- **After-care homes** provide continued support after the child turns 18 until 21 years, ensuring full reintegration.

#### **5. Protection of Privacy (Section 74)**

- The identity of a child in conflict with law cannot be disclosed.
- Publishing name, photograph, or address is punishable.
- This safeguards the child's dignity and future prospects.

#### **6. Legal Aid and Participation (Section 8 & 12)**

- Every child is entitled to **free legal aid** through the **Legal Services Authority**.
- Proceedings must ensure **active participation** of the child, parents, and counsellors.
- Bail should be granted **in all cases**, except when release may lead to danger or association with criminals.

#### **7. Principle of Best Interest and Presumption of Innocence**

Under **Section 3** (General Principles):

- **Best Interest Principle** – All decisions must prioritize the welfare and development of the child.
- **Presumption of Innocence (Section 3(i))** – Every child is presumed innocent until proven otherwise.

#### **8. Role of Police and Probation Officer**

##### **Special Juvenile Police Unit (SJPU) (Section 107)**

- Each district must have an SJPU consisting of trained officers.
- Tasked with **child-friendly handling**, not coercive policing.
- Coordinate with **NGOs, Probation Officers, and JJB**.

##### **Probation Officer**

- Prepares the **Social Investigation Report**.
- Supervises the child during probation.
- Ensures compliance with JJB's orders.

#### **9. Time Limit for Disposal (Section 14(4))**

- The entire inquiry should be completed **within four months** from the date of the first appearance of the child before the Board.
- Extension of **two months** is allowed only for valid reasons.

## 10. Case Laws

1. **Shilpa Mittal v. State (NCT of Delhi), 2020 SC**  
– Clarified the meaning of *heinous offences* and held that offences with minimum punishment less than 7 years cannot be treated as “heinous.”
2. **Jitendra Singh v. State of U.P., 2021 SC**  
– Reaffirmed that juvenility can be raised at any stage, even after conviction.
3. **Arnit Das v. State of Bihar, 2000 SC**  
– The date of offence determines the age, not the date of production before the court.

## 11. Significance of Special Procedure

- Replaces **retributive justice** with **reformative justice**.
- Prevents criminalisation of children.
- Upholds **Articles 14, 15(3), 21, 39(e), 39(f)** of the Constitution.
- Promotes **UN Convention on the Rights of the Child (1989)** principles.

## 12. Conclusion

The **special procedure** under the JJ Act 2015 ensures that children in conflict with law are treated with **care, compassion, and opportunities for reform**, not punishment.

By focusing on **rehabilitation, education, and social reintegration**, it seeks to transform the child into a **responsible citizen** rather than a lifelong offender.

# Quick Revision Sheet

## UNIT – I

### 1. Rights of Child under the Indian Constitution

- **Article 21:** Right to life & personal liberty — includes right to live with dignity, education, protection from exploitation.
- **Article 23:** Prohibits human trafficking and forced labour — child begging and bonded labour banned.
- **Article 24:** Prohibits employment of children below 14 years in factories or hazardous works.
- **Directive Principles (Art. 39(e) & 39(f)):** Duty of State to protect children’s health, strength and provide opportunities for healthy development.  
**Case law:** *M.C. Mehta v. State of Tamil Nadu (1991)* – banned child labour in match industries.

### 2. Rights of Child – Global Perspective

- **UN Declaration on the Rights of the Child (1959):** 10 principles — right to name, education, health, love, protection.
- **UN Convention on the Rights of the Child (1989):** Legally binding treaty — four pillars: survival, protection, development, participation.
- **Cape Town Principles (1997):** Guidelines for children involved in armed conflict.

- **Paris Commitments (2007):** Prevention of child recruitment in armed groups.
- **ILO & Child Rights:**
  - *Article 22* of ILO Constitution – focus on humane labour conditions.
  - *C29 Forced Labour Convention (1930)* – prohibits child and forced labour.

## UNIT – II

### 1. Offences against Child under BNS, 2023

- **Kidnapping & Abduction (Ss. 137–142):** Taking or enticing a minor without guardian's consent; includes for ransom, begging, or illicit purpose.
- **Prostitution (Ss. 98–99):** Sexual exploitation of a child; punishment 7–10 years imprisonment and fine.
- **Foeticide & Infanticide (Ss. 91–94):** Killing unborn or newly born child; treated as homicide with aggravated punishment.

## UNIT – III

### 1. Crimes against Child – Legislative Efforts in India

- **Child Labour (Prohibition & Regulation) Act, 1986:** Prohibits child employment below 14 years; regulates conditions of work for adolescents (14–18 yrs).
- **Prohibition of Child Marriage Act, 2006:**
  - Male <21, Female <18 → voidable marriage.
  - Punishment: up to 2 years + fine ₹1 lakh.
- **Immoral Traffic (Prevention) Act, 1956:** Targets child prostitution and trafficking; special police officers and rescue homes.

### 2. POCSO Act, 2012

- **Objective:** Protect children from sexual assault, harassment, and pornography; provide child-friendly judicial procedure.
  - **Types of Offences:**
    - Penetrative sexual assault (Sec. 3–5)
    - Sexual assault (Sec. 7–9)
    - Sexual harassment (Sec. 11–12)
    - Using child for pornography (Sec. 13–15)
  - **Abetment & Attempt:** Punishable even if offence not completed (Sec. 16–18).
  - **Procedure:**
    - FIR by anyone; child's statement recorded at home or safe place;
    - Medical exam in presence of guardian;
    - Trial by Special Court in-camera and within 1 year.
  - **Special Courts:** Child-friendly atmosphere, evidence through video, identity protected (Sec. 33–37).
- Case law:** *State of Rajasthan v. Om Prakash (2002)* – strict view in child sexual assault.

### 1. Juvenile Delinquency in India

- **Meaning:** Violation of law by a child below 18 years.
- **Causes:** Poverty, broken families, peer influence, lack of education, media, neglect.
- **History:**
  - 1850 Apprentices Act → first child reform law.
  - 1986 JJ Act → focus on care & protection.
  - 2015 Act → replaced 2000 Act; allows 16–18 yrs trial for heinous offences.

### 2. Juvenile Justice (Care & Protection of Children) Act, 2015

- **Definition of Juvenile:** Child below 18 years.
- **Juvenile in Conflict with Law:** Who commits offence under 18.
- **Neglected Child:** Child deprived of family care or protection.
- **Special Procedure:**
  - No arrest; produced before **Juvenile Justice Board (JJB)** within 24 hours.
  - **Preliminary assessment** for heinous offence (Sec. 15).
  - **Orders:** counselling, probation, community service, special home (max 3 years).
  - **Rehabilitation:** through adoption, foster care, education.
- **Child Welfare Committee (CWC):** Handles children in need of care & protection.
- **Principles:** Best interest, dignity, non-stigmatization, presumption of innocence.

#### Case laws:

- *Shilpa Mittal v. State (2020)* – clarified “heinous offence”.
- *Arnit Das v. State of Bihar (2000)* – age at time of offence is decisive.

**–Abhishek Chaudhary**